Scenario 1: Mock The Genesis

Facts

1. Albert Vance, a tenured chemistry professor, was recently diagnosed with terminal cancer and faced mounting medical debts. Desperate for money, Albert decided to secretly manufacture 'Blue-X,' a Schedule I narcotic.

2. Albert approached Benny Cole, a former student involved in the local drug trade. They verbally agreed that Albert would synthesize the Blue-X and Benny would manage street distribution, splitting all profits equally.

3. To procure precursors, Albert contacted Dan, a commercial chemical supplier. Dan knew Albert intended to use the chemicals to manufacture illicit drugs. Citing the legal risk, Dan charged Albert a 500% markup on 10 gallons of highly volatile ether, explicitly stating, 'I don't want any share of whatever you're selling; just pay my invoice.'

4. Albert needed a high-speed centrifuge. He walked into an adjacent university lab and took a commercial centrifuge to keep in his own workspace, genuinely believing it was the exact machine assigned to his own university grant, when in fact it belonged to Dr. Smith.

5. The State Public Welfare Chemical Act states: 'It shall be unlawful to store more than 5 gallons of ether in a single facility without a fire safety permit.' The statute is silent on mental state and carries a maximum penalty of 30 days in jail.

6. Albert read the Act online but did not apply for a permit. He personally concluded, based on his own reading of the statute's preamble, that university laboratories were implicitly exempt from the permit requirement.

7. Albert had recently started experimental cancer medication. The warning label explicitly cautioned that it causes 'sudden, severe, and uncontrollable muscle spasms.' Over the prior week, Albert experienced three such spasms, causing him to drop heavy objects, yet he decided to proceed with the volatile chemical synthesis anyway.

8. Benny delivered the final pseudoephedrine precursors to the lab. Immediately after, Albert began synthesizing the Blue-X—a process the jurisdiction explicitly classifies as an enumerated felony for purposes of felony murder. He lifted a flask of highly reactive catalyst to pour into the ether vat.

9. As Albert held the flask over the vat, a severe muscle spasm caused his hand to jerk violently, dumping the entire flask into the ether. The sudden over-concentration triggered an immediate, massive explosion that blew out the laboratory's glass walls.

10. Chloe Davis, an adult lab assistant who had no knowledge of the illicit manufacturing, was walking past the lab door at that exact moment. The explosion shattered the glass, inflicting deep, life-threatening lacerations to her neck and chest.

11. Paramedics stabilized Chloe and transported her to the hospital. In the emergency room, a doctor committed an act of ordinary medical negligence by misreading Chloe's chart and administering a massive dose of a blood thinner instead of a coagulant. The blood thinner caused her stabilized wounds to hemorrhage violently, resulting in her death.

12. Following the explosion, Benny fled the scene with the one intact case of Blue-X product. He took the case to a stash house rented under a fake name by his associate, Kev.

13. Kev placed the Blue-X in a floor safe. Benny did not live at the stash house, but Kev gave Benny the safe's combination so Benny could independently retrieve the drugs for street sales whenever he wanted.

14. One evening, while Benny was at the stash house auditing the product, a rival dealer named Slash kicked down the front door wielding a machete, screaming, 'Give me the Blue-X or I'm chopping your head off right now!'

15. Slash cornered Benny in a back room. The room had an open, ground-floor window immediately behind Benny. In this jurisdiction, there is a statutory duty to retreat before using deadly force if a safe retreat is available. Benny did not attempt to exit the window; instead, he drew a concealed handgun and shot Slash dead.

16. Hearing the gunshot, Kev emerged from the basement, furious that Benny had brought violence to his stash house. Kev racked a shotgun, pointed it at Benny's head, and screamed, 'Take this duffel bag of Blue-X to the drop point right now or I'll blow a hole in your chest!'

17. Terrified of Kev's immediate threat, Benny grabbed the bag, fled the stash house, and delivered the drugs to the specified location, where he was immediately arrested by undercover police.

Q1. Assume Albert and Benny are charged with conspiracy to manufacture Blue-X. Benny argues that because he was only handling street distribution while Albert was solely responsible for synthesis, he did not agree to manufacture the drug. Which is the most likely legal conclusion regarding the agreement element?

a. Not guilty of conspiracy because the Wharton's Rule exception applies when a crime necessarily requires two parties to complete the transaction.

b. Not guilty of conspiracy because Benny lacked the technical capacity to manufacture the drug, rendering the agreement legally impossible to execute.

c. Not guilty of conspiracy because a valid agreement requires each conspirator to personally participate in the actus reus of the target offense.

d. Guilty of conspiracy because their verbal agreement to split the profits from the joint enterprise satisfies the bilateral agreement requirement for the entire scheme.

e. Guilty of conspiracy because Benny's physical presence at the laboratory during the precursor delivery constitutes a unilateral agreement to manufacture.

Answer: (d)

Explanation: A conspiracy requires an agreement to commit the target offense, but conspirators are permitted to divide labor. By agreeing to distribute the manufactured product and splitting the profits (Fact 2), Benny agreed to the overarching manufacturing and distribution scheme, establishing a bilateral agreement. (b) fails because physical presence is not the test for agreement, and unilateral agreement concerns undercover agents. (c) fails because factual impossibility or a lack of individual capacity does not bar conspiracy liability if the group plans to execute the crime. (d) is legally flawed because conspirators need not personally perform the actus reus of the target offense. (e) fails because Wharton's Rule applies to offenses that inherently require two people (like dueling), not drug manufacturing.

Q2. Assume Dan is charged with conspiracy to manufacture Blue-X. He argues that he explicitly disclaimed any share of the profits and merely sold a legal chemical at a high price. Which is the most likely legal conclusion regarding Dan's liability?

a. Not guilty of conspiracy because his explicit statement disclaiming a share of the profits completely immunizes him from any inferred intent.

b. Not guilty of conspiracy because ether is a legally available chemical with widespread innocent uses, barring any strict liability application.

c. Not guilty of conspiracy because Dan did not participate in the actual synthesis of the Blue-X or the downstream street distribution.

d. Guilty of conspiracy because any sale of goods to a known criminal enterprise automatically establishes purpose under the common law.

e. Guilty of conspiracy because charging a 500% markup gives him a financial stake in the venture, allowing an inference of his purpose to facilitate it.

Answer: (e)

Explanation: Under the *Lauria* doctrine, while mere knowledge of illegal use is generally insufficient to establish the "purpose" required for conspiracy, purpose can be inferred if the supplier has a "stake in the venture." Charging a grossly inflated markup (500%) for restricted goods establishes this financial stake. (a) fails because mere knowledge is generally insufficient; purpose is required. (c) fails because a verbal disclaimer does not override the objective reality of the markup, which establishes a financial stake regardless of his words. (d) fails because while ether has innocent uses, Dan knew of its illicit use and exploited it; strict liability is irrelevant to conspiracy intent. (e) fails because conspirators do not need to participate in the actus reus if they share the purpose and agree to facilitate it.

Q3. Assume Albert is charged with theft for taking the centrifuge, an offense requiring the specific intent to permanently deprive another of their property. He argues he genuinely believed the centrifuge was his own. Which is the most likely legal conclusion?

a. Guilty of theft because his broader illicit intent to manufacture narcotics transfers to any property crimes committed during the preparation phase.

b. Guilty of theft because mistakes of fact must be both honest and objectively reasonable, and taking an item from a different lab is per se unreasonable.

c. Not guilty of theft because the university environment implies a general consent to share equipment among tenured professors conducting official research.

d. Guilty of theft because the taking of scientific equipment without authorization is a strict liability offense where subjective mental state is irrelevant.

e. Not guilty of theft because his actual, honest belief that he owned the centrifuge directly negates the mens rea required for the element of taking the property of another.

Answer: (e)

Explanation: Theft is a specific intent crime requiring the intent to take the property *of another*. An honest mistake of fact regarding ownership directly negates this required mental state, preventing a conviction (Fact 4). (b) fails because there is no blanket legal doctrine of implied general consent simply based on being a tenured professor. (c) fails because for specific intent crimes, an honest mistake of fact need not be objectively reasonable to successfully negate the required mental state. (d) fails because theft is not a strict liability offense; it inherently requires a culpable mental state. (e) fails because the doctrine of transferred intent applies to missing a target and hitting another (e.g., in homicide), not transferring intent across entirely different statutory offenses.

Q4. Assume Albert is charged with the unpermitted storage of ether under the State Public Welfare Chemical Act. He argues the prosecution must prove he knew he exceeded the 5-gallon limit, as the statute is silent on mental state. How will the court likely interpret the statute?

a. The statute is a strict liability offense because the legislature's silence on mental state operates as an absolute bar to any mistake of fact defense.

b. The statute is a strict liability offense because environmental and chemical regulations automatically dispense with the voluntary act requirement entirely.

c. The statute is a strict liability offense because it regulates a dangerous item, carries a minor penalty, and Albert was in a position to prevent the harm.

d. The statute requires proof of knowledge because ether has widespread innocent uses in university laboratories, triggering the Staples exception.

e. The statute requires proof of knowledge because the Morissette presumption mandates reading a mens rea requirement into all criminal statutes regardless of penalty.

Answer: (c)

Explanation: Under the *Morissette* factors, a statute is interpreted as a strict liability public welfare offense if it regulates dangerous items (ether), carries a minor penalty (30 days in jail), and targets a defendant in a position to prevent the harm. (a) fails because the *Morissette* presumption can be overcome by the public welfare offense factors. (b) fails because unlike the ordinary firearms in *Staples*, bulk volatile ether is inherently dangerous and highly regulated, putting possessors on notice. (d) fails because strict liability dispenses only with the mens rea requirement, not the actus reus requirement of a voluntary act. (e) fails because statutory silence alone does not bar mistake defenses; for example, the MPC defaults to recklessness when a statute is silent.

Q5. Assume that, regardless of the required mens rea, Albert argues his personal reading of the statute's preamble—that universities were implicitly exempt—constitutes a valid mistake of law defense for the ether storage charge. Which is the most likely legal conclusion?

a. Invalid defense because under the Marrero rule, a personal misinterpretation of an ambiguous statute does not qualify as reasonable reliance on an official statement.

b. Valid defense because professors are considered agents of the state, transforming his interpretation into an official statement of the law.

c. Invalid defense because the Cheek exception specifically explicitly prohibits mistake of law defenses for any regulatory or public welfare offense.

d. Invalid defense because mistake of law defenses are only available for malum in se crimes where moral blameworthiness must be firmly established.

e. Valid defense because his reading was based on the actual text of the statute rather than general ignorance of the law's existence.

Answer: (a)

Explanation: Under the *Marrero* rule, a defendant's personal misreading of a statute—even an arguably reasonable one based on a preamble (Fact 6)—does not constitute reliance on an "official statement of the law" and therefore provides no mistake of law defense. (a) fails because personal interpretations of the law, even if based on the text, do not excuse the violation. (b) fails because Albert is not a government official charged with interpreting the law for enforcement purposes; he is acting in a personal capacity. (d) fails because mistake of law defenses are actually more restricted for malum in se crimes (under *Prince*) and more relevant to malum prohibitum crimes. (e) fails because *Cheek* applies to tax "willfulness" and does not categorically ban mistake of law defenses for regulatory offenses.

Q6. Assume Albert argues that he cannot be held liable for the explosion because the catastrophic event was triggered by an involuntary muscle spasm, which negates the voluntary act requirement. Which is the most likely legal conclusion?

a. Liable because under the time-framing doctrine, liability traces back to his prior voluntary choice to proceed with the synthesis despite knowing the risk of spasms.

b. Not liable because the state must prove that every single movement in the sequence of a crime was fully voluntary and conscious.

c. Not liable because the medical side effects of a prescription drug constitute an external physical compulsion that absolutely bars prosecution.

d. Liable because a muscle spasm is legally classified as a reflex that fulfills the voluntary act requirement if the defendant is awake.

e. Not liable because the immediate physical movement causing the explosion was involuntary, severing any connection to his prior acts.

Answer: (a)

Explanation: Similar to cases involving drivers with known seizure disorders (*Decina*), the time-framing doctrine traces liability back to the defendant's prior voluntary choice that foreseeably created the risk of involuntary harmful conduct. Albert knew of the spasm risk but voluntarily proceeded with the synthesis (Fact 7). (a) fails because reflexes are explicitly excluded from the definition of a voluntary act under MPC 2.01(2). (c) fails because the moment of involuntary movement does not sever liability if a prior voluntary act foreseeably created the danger. (d) fails because pharmaceutical side effects do not equal "external physical compulsion" (like being physically pushed by police), and voluntarily taking the risk negates the defense. (e) fails because the law only requires that the conduct *include* a voluntary act, not that every single movement be voluntary.

Q7. Assume Albert is charged with homicide for Chloe's death. He argues that the doctor's administration of a massive dose of the wrong medication was the actual cause of her death and relieves him of liability. Which is the most likely legal conclusion?

a. Proximate cause is established because medical professionals are considered strict liability actors, transferring any negligence directly to the initial aggressor.

b. Proximate cause fails because the explosion only caused lacerations, meaning the death was a highly extraordinary result not foreseeable from Albert's conduct.

c. Proximate cause is established because under the concurrent sufficient causes doctrine, both Albert and the doctor acted with identical mens rea.

d. Proximate cause fails because the doctor's error constituted an independent, superseding intervening act that completely severed the causal chain.

e. Proximate cause is established because ordinary medical negligence in treating an inflicted wound is a dependent intervening cause that does not sever liability.

Answer: (e)

Explanation: Ordinary medical negligence in treating a wound caused by the defendant is legally considered a dependent intervening cause that is reasonably foreseeable, and therefore does not sever the chain of proximate causation. (a) fails because ordinary medical negligence is a dependent, not independent/superseding, intervening cause. (b) fails because death resulting from medical treatment for life-threatening lacerations caused by an explosion is not a highly extraordinary result. (d) fails because there is no doctrine that categorizes doctors as strict liability actors or transfers negligence in this manner. (e) fails because concurrent sufficient causes apply when two independent forces act simultaneously to cause death (e.g., two shooters at exactly the same time), not in a sequential treatment scenario.

Q8. Assume the prosecution must choose the most viable homicide theory against Albert for Chloe's death. They are debating between felony murder and extreme indifference murder. Which theory is more viable?

a. Felony murder is more viable because drug manufacturing is an enumerated felony, allowing a murder conviction without needing to prove Albert's subjective awareness of the risk to Chloe.

b. Both are equally viable because strict liability offenses automatically fulfill the mens rea requirements for both felony murder and extreme indifference murder.

c. Felony murder is more viable because the extreme indifference standard requires the prosecution to prove Albert actually intended to kill bystanders.

d. Extreme indifference murder is more viable because felony murder requires the victim to be a participant in the underlying criminal conspiracy.

e. Extreme indifference murder is more viable because the inherently dangerous felony limitation strictly bars drug offenses from serving as predicates.

Answer: (a)

Explanation: Felony murder allows for a murder conviction based on the commission of an enumerated felony without the need to prove malice or subjective awareness of risk to human life, making it the most direct and viable path. The jurisdiction explicitly enumerates the synthesis process (Fact 8). (b) fails because extreme indifference murder requires recklessness manifesting extreme indifference to human life, not an intent to kill. (c) fails because felony murder explicitly applies to innocent bystanders killed during the felony; the agency rule only exempts deaths of co-felons killed by third parties. (d) fails because drug manufacturing is explicitly listed in the facts as an enumerated felony in this jurisdiction. (e) fails because extreme indifference murder inherently requires a subjective mens rea (recklessness), and felony murder is a substitute for malice, not based on strict liability offenses.

Q9. Assume Albert argues that the drug manufacturing felony cannot serve as the predicate for felony murder because the act of manufacturing the drugs merges with the explosion that caused Chloe's death. Which is the most likely legal conclusion?

a. The felony merges because all non-violent felonies must be independently completed before any homicide liability can attach.

b. The felony merges because the explosion and the drug manufacturing occurred simultaneously in the same laboratory setting.

c. The felony does not merge because the death of a bystander automatically negates the application of the merger doctrine.

d. The felony does not merge because Albert's independent felonious purpose was to synthesize drugs, not to assault Chloe.

e. The felony does not merge because the merger doctrine only applies to inherently dangerous felonies committed with weapons.

Answer: (d)

Explanation: The merger doctrine applies when the underlying felony is assaultive in nature and integral to the homicide. Because Albert's independent felonious purpose was to manufacture drugs for profit, not to assault Chloe, the felony is independent and does not merge into the homicide. (a) fails because physical or temporal simultaneity does not trigger merger; the inquiry focuses on the independent purpose of the underlying felony. (b) fails because a felony does not need to be completed; deaths occurring during the attempt or commission can trigger felony murder. (d) fails because merger applies to assaultive felonies generally, not exclusively to felonies committed with deadly weapons. (e) fails because bystander deaths do not automatically negate merger; if the underlying felony was an assault that inadvertently killed a bystander, it might still merge depending on the jurisdiction.

Q10. Assume that, hypothetically, the explosion had not occurred and police raided the lab just as Albert lifted the flask of reactive catalyst over the ether vat. He is charged with attempted manufacture of Blue-X. Which is the most likely legal conclusion?

a. Not guilty of attempt because the police raid constitutes an involuntary abandonment of the criminal enterprise, which serves as a complete defense.

b. Guilty of attempt because lifting the catalyst to pour it into the vat constituted a substantial step that was strongly corroborative of his criminal purpose.

c. Guilty of attempt because his prior act of verbally agreeing with Benny satisfied the strict physical proximity test for attempt.

d. Not guilty of attempt because he had not yet mixed the chemicals, meaning he had not crossed the threshold from mere preparation.

e. Not guilty of attempt because attempt liability requires the actual production of a usable quantity of the prohibited substance.

Answer: (b)

Explanation: Under the MPC, attempt requires a substantial step toward the commission of the offense that is strongly corroborative of the actor's criminal purpose. Lifting the reactive catalyst to pour into the vat satisfies this standard, moving beyond mere preparation. (b) fails because verbal agreement is relevant to conspiracy, while attempt under the physical proximity test requires being dangerously close to success, not just an agreement. (c) fails because the substantial step test does not require the final act or actual mixing; the act of lifting the flask to pour is sufficient. (d) fails because abandonment must be voluntary and complete; a police raid is an external interruption, not a voluntary abandonment. (e) fails because requiring actual production would mean the completed crime was required, defeating the entire concept of inchoate attempt liability.

Q11. Assume Benny is charged with the unpermitted ether storage violation committed by Albert. Benny argues he had no knowledge of how much ether Albert was storing and never visited the lab. Which is the most likely legal conclusion regarding Benny's liability?

a. Not guilty under Pinkerton because Benny's role was strictly limited to downstream street distribution rather than upstream chemical procurement.

b. Guilty under Pinkerton because strict liability public welfare offenses are the only crimes that automatically extend to all unindicted co-conspirators.

c. Guilty under Pinkerton because the unpermitted ether storage was a reasonably foreseeable consequence of the Blue-X manufacturing conspiracy and in furtherance of it.

d. Not guilty under Pinkerton because the doctrine requires each co-conspirator to directly participate in the specific actus reus of the substantive offense.

e. Not guilty under Pinkerton because the offense was merely a misdemeanor regulatory violation, which cannot serve as a conspiratorial predicate.

Answer: (c)

Explanation: Under *Pinkerton* liability, a conspirator is liable for the substantive offenses committed by a co-conspirator if those offenses were committed in furtherance of the conspiracy and were reasonably foreseeable. Large quantities of volatile precursors are highly foreseeable in a drug manufacturing scheme. (b) fails because *Pinkerton* applies to any foreseeable offense in furtherance of the conspiracy, not just strict liability offenses. (c) fails because *Pinkerton*

explicitly extends liability precisely when the co-conspirator did *not* participate in the actus reus of the substantive crime. (d) fails because *Pinkerton* can apply to misdemeanors or regulatory offenses committed in furtherance of the conspiracy. (e) fails because a division of labor does not shield a conspirator from foreseeable crimes committed by partners in furtherance of the joint enterprise.

Q12. Assume we are prosecuting Benny regarding the stash house incident. Benny is charged with possession of the Blue-X found in Kev's floor safe. Benny argues he did not live there and the drugs were not on his person. Which is the most likely legal conclusion?

a. Not guilty of constructive possession because the legal tenant of a premises automatically maintains exclusive possession of all items in locked containers.

b. Guilty of constructive possession because Kev providing Benny with the safe's combination gave Benny the intention and ability to exercise independent control over the drugs.

c. Not guilty of constructive possession because the drugs were placed in the safe by Kev, severing Benny's direct physical nexus to the contraband.

d. Guilty of constructive possession because Benny was physically present in the stash house when the rival dealer kicked down the door.

e. Not guilty of constructive possession because the state cannot prove Benny had the specific intent to distribute those exact drugs on that specific day.

Answer: (b)

Explanation: Constructive possession is established when a person has knowledge of the contraband and the power and intention to exercise dominion and control over it. Having the safe's combination for independent retrieval (Fact 13) satisfies this requirement. (a) fails because mere presence near contraband is insufficient to establish constructive possession without power and intent to control. (c) fails because possession can be joint; Kev's tenancy does not grant him exclusive possession if he shares access with others. (d) fails because who physically placed the items there is irrelevant if Benny currently has the ability to exercise control over them. (e) fails because possession requires intent to control, not immediate intent to distribute on a specific day.

Q13. Assume Benny asserts a self-defense claim for shooting Slash. The jurisdiction enforces a duty to retreat before using deadly force if a safe retreat is available. Benny argues Slash threatened him with a machete. Which is the most likely legal conclusion?

a. Invalid defense because a handgun constitutes disproportionate and excessive force when defending against a bladed weapon like a machete.

b. Invalid defense because Benny failed to utilize the open ground-floor window, violating his statutory duty to retreat before employing lethal force.

c. Invalid defense because a person actively engaged in an illegal drug enterprise is absolutely barred from asserting self-defense under any circumstances.

d. Valid defense because Slash's threat to chop off Benny's head created a subjective fear of imminent death, which automatically overrides retreat requirements.

e. Valid defense because the Castle Doctrine universally abolishes the duty to retreat for anyone physically inside a residential structure regardless of ownership.

Answer: (b)

Explanation: In a duty-to-retreat jurisdiction, a defendant cannot use deadly force if they know they can avoid the necessity of using such force with complete safety by retreating. Benny failed to use the available safe retreat out the open ground-floor window (Fact 15). (a) fails because the Castle Doctrine generally applies to one's own home, and Benny did not live at the stash house. (b) fails because while he faced an imminent threat, the statutory duty to retreat must still be satisfied if a safe escape route is available. (d) fails because being engaged in a crime does not categorically strip a person of the right to self-defense against a lethal attack, though it may trigger initial aggressor issues. (e) fails because a machete is a deadly weapon, making a handgun a proportional response to a lethal threat.

Q14. Assume Benny is charged with drug distribution for delivering the duffel bag of Blue-X. He raises a duress defense, pointing to Kev's threat. Which is the most likely legal conclusion regarding the threat element?

a. The duress defense is established because Kev's status as a co-conspirator creates a strict presumption of coercive control over Benny.

b. The duress defense fails because threats to inflict serious bodily harm do not qualify for duress unless they are accompanied by actual physical violence.

c. The duress defense is established because Kev's threat to blow a hole in Benny's chest with a racked shotgun was a present, immediate, and impending threat.

d. The duress defense fails because Benny was outside the stash house during the delivery, severing the physical proximity of the threat.

e. The duress defense fails because the defense is strictly limited to situations where the defendant is coerced into committing a homicide.

Answer: (c)

Explanation: The core element of duress requires a present, immediate, and impending threat of death or serious bodily injury. A racked shotgun pointed at the head accompanied by an immediate demand to deliver drugs perfectly satisfies this requirement. (b) fails because there is no legal presumption of coercive control based merely on co-conspirator status. (c) fails because a credible threat of serious bodily harm is sufficient; actual physical violence is not required to establish duress. (d) fails because the threat compelled the immediate flight and delivery; the coercive force of a gun to the head does not instantly dissipate upon walking out the door. (e) fails because duress is actually *barred* as a defense to intentional homicide; it is fully available for drug distribution.

Q15. Assume that, under the Model Penal Code approach, the prosecution seeks to bar Benny from raising a duress defense for the drug delivery. They argue he is at fault for being in the situation. Which is the most likely legal conclusion?

a. The defense is allowed because the MPC universally permits duress defenses regardless of the defendant's prior fault in creating it.

b. The defense is allowed because the MPC fault calibration rules only apply if the defendant was the initial physical aggressor.

c. The defense is barred because strict liability applies to all actions taken within a stash house, negating affirmative defenses.

d. The defense is barred because by joining a drug conspiracy, he recklessly placed himself in a situation where duress was probable.

e. The defense is allowed because Kev's specific reaction to Slash's break-in was a highly extraordinary event Benny could not foresee.

Answer: (d)

Explanation: Under the MPC (§ 2.09(2)), the duress defense is unavailable if the actor recklessly placed himself in a situation in which it was probable that he would be subjected to duress. Joining a drug ring and working in a stash house satisfies this recklessness standard. (a) fails because strict liability applies to specific offenses, not physical locations, and does not automatically bar affirmative defenses like duress. (c) fails because the MPC limits duress based on recklessly entering a coercive situation, not just being an initial aggressor in a physical fight. (d) fails because violence and coercion among criminals in a drug stash house are inherently probable, not highly extraordinary. (e) fails because the MPC explicitly includes the fault calibration limitation for recklessness (and negligence if the charge is a crime of negligence).

Scenario 2: Mock The Distribution Ring

Facts

1. Artie, seeking to expand his distribution ring, summons Ben, Cole, and Damon to his apartment and asks them if they are in to 'clear out the East Side stash house and take over the corners.'

2. Ben, Cole, and Damon each nod silently and accept a $500 cash advance from Artie, though they do not discuss specific details among themselves.

3. Artie assigns Ben to sell one kilogram of stimulants to 'Vulture,' who is actually an undercover detective in a sting operation. Vulture does not actually have the funds to purchase the drugs, and no drugs would ever have reached the street.

4. Ben drives toward the designated meeting point with the drugs. While still half a mile away, he receives a text from his mother asking him to come home. He pulls over, turns his car around while no police are visible, and flushes the stimulants down the toilet at a gas station.

5. Meanwhile, Damon and Cole drive to the East Side stash house. Outside, Damon racks a loaded 9mm handgun in the car. Cole expresses surprise, but Damon says it is 'just for show.' Cole proceeds to his assigned post to act as a lookout at the back door.

6. Damon kicks in the front door. Inside, the occupant, Vic, mocks Damon as an 'errand boy.' Damon's face flushes red with sudden rage and he immediately shoots Vic dead without ever demanding drugs or money.

7. Cole hears the gunshot, sprints away from the house, and hides in a motel. He cuts off all communication, ignoring subsequent calls from Artie, but he does not notify the police or explicitly tell Artie he is quitting the operation.

8. Damon texts Artie confirming the kill and noting that no product was retrieved. Artie replies, 'Stay low, good work,' and wires Damon an additional $1,000.

9. The drugs are stored in a locked safe under the couch; Artie knows the drugs are inside and controls the space, but lacks the key, and he occasionally pushes the safe aside to sweep under the couch to maintain physical dominion over the container.

Q16. Is there sufficient evidence of a conspiratorial agreement between Artie, Ben, Cole, and Damon?

a. Yes, because conspiracy is a strict liability offense where receiving any funds originating from a criminal enterprise automatically establishes membership regardless of the recipient's intent.

b. No, because Ben, Cole, and Damon did not explicitly discuss specific details or individual roles among themselves, leaving the precise terms of the criminal enterprise undefined and incomplete.

c. No, because under the bilateral approach to conspiracy, the prosecution must prove a formal verbal or written contract between all parties before liability can attach to the group.

d. No, because an agreement to merely "take over the corners" is too generalized and vague to constitute the specific intent to commit a target offense required for a conspiracy conviction.

e. Yes, because a silent nod and acceptance of cash in response to an explicit proposal of coordinated criminal activity is sufficient to infer an agreement under the totality of circumstances.

Answer: (e)

Explanation: The correct answer is (a) because an agreement can be inferred from coordinated conduct and acceptance of a role, even without explicit verbal discussion of details. (b) is wrong because explicit negotiation of specific details is not legally required to form a conspiracy. (c) is wrong because courts routinely infer agreement from conduct; a formal contract is never required. (d) is wrong because conspiracy is a specific intent crime, not a strict liability offense.

(e) is wrong because agreeing to "take over the corners" in context clearly contemplates the specific intent to commit narcotics distribution.

Q17. Assume the jurisdiction applies the Model Penal Code's "substantial step" test. Has Ben committed the actus reus for attempted distribution of stimulants before turning around?

a. Yes, because driving toward the designated meeting point while possessing the stimulants is an act strongly corroborative of his criminal purpose to complete the planned distribution.

b. Yes, because under the substantial step test, the defendant's mental state is the only relevant element, making the physical proximity to the target location entirely legally irrelevant.

c. Yes, because the moment Ben accepted the assignment from Artie and received the cash advance, the inchoate crime of attempted distribution was fully completed under the proximity standard.

d. No, because by remaining half a mile away from the sting location, Ben had not yet come dangerously close to completing the actual physical transfer of the stimulants to the undercover buyer.

e. No, because the fact that Ben voluntarily turned his car around before arriving proves that his earlier driving was merely preparatory and lacked the necessary firmness of criminal intent.

Answer: (a)

Explanation: The correct answer is (a) because under the MPC, driving toward the target location with the necessary materials is a substantial step that is strongly corroborative of criminal purpose. (b) is wrong because "dangerously close" is the common law proximity test, not the MPC's substantial step test. (c) is wrong because merely accepting an assignment and a cash advance is likely mere preparation; the driving crossed the threshold. (d) is wrong because abandoning the effort later does not mean the prior physical acts lacked firmness at the moment they were committed. (e) is wrong because the MPC still requires an actus reus (a substantial step); mental state alone is never sufficient.

Q18. Assume Ben crossed the threshold for attempt. Under the Model Penal Code, can Ben successfully assert the affirmative defense of abandonment?

a. No, because Ben had already crossed the substantial step threshold for attempt, and the MPC strictly follows the common law rule barring any abandonment defense once attempt attaches.

b. No, because by flushing the drugs down the toilet, Ben effectively tampered with physical evidence, which legally disqualifies him from claiming the affirmative defense of abandonment.

c. Yes, because his renunciation was complete and voluntary, as it was not motivated by an increased risk of detection or unexpected resistance, and he prevented the sale.

d. No, because a valid abandonment defense under the MPC requires the defendant to prove that their withdrawal was motivated by genuine moral remorse rather than external familial pressure.

e. Yes, because the MPC dictates that any withdrawal from a planned crime prior to actual police detection automatically negates all prior criminal liability regardless of the underlying motive.

Answer: (c)

Explanation: The correct answer is (a) because the MPC recognizes a complete and voluntary renunciation defense, and Ben's withdrawal was prompted by a personal text, not an increased risk of apprehension. (b) is wrong because the MPC does not require genuine moral remorse, only that the renunciation isn't forced by the risk of detection or difficulty of completion. (c) is wrong because withdrawal must be "complete and voluntary," not simply "any withdrawal." (d) is wrong because the MPC explicitly created the abandonment defense to apply *after* a substantial step has been taken. (e) is wrong because destroying the drugs prevents the crime's completion, aiding his defense, and evidence tampering is a separate offense that does not legally bar the abandonment defense.

Q19. Assume Ben is charged with attempted distribution, and the jurisdiction has adopted the MPC's approach to impossibility. Does the fact that "Vulture" was an undercover detective with no funds defeat the attempt charge against Ben?

a. Yes, because under the MPC framework, criminal attempt inherently requires an objective, genuine possibility of completing the target offense, which is completely absent in a sting operation.

b. No, because the MPC eliminates impossibility defenses and bases liability on whether Ben's conduct would constitute the crime if the circumstances were as he believed them to be.

c. Yes, because this scenario presents a classic case of pure legal impossibility, given that distributing narcotics to a legally authorized undercover detective is not actually a statutory crime.

d. Yes, because the government deliberately manufactured the impossibility by deploying an unfunded sting operation, which categorically bars attempt liability under the MPC framework.

e. No, because while the MPC retains the defense of factual impossibility, Ben's actions demonstrated sufficient dangerous proximity to the offense to override the impossibility doctrine.

Answer: (b)

Explanation: The correct answer is (a) because the MPC explicitly abolishes impossibility as a defense, judging defendants based on the circumstances as they believed them to be. (b) is wrong because selling drugs remains a statutory crime regardless of the buyer's identity; this is factual or hybrid impossibility, not pure legal impossibility. (c) is wrong because the MPC abolished factual impossibility entirely and does not use the dangerous proximity test. (d) is wrong because the government's use of a sting operation does not categorically bar attempt liability under the MPC; it actually structurally enables it. (e) is wrong because the MPC expressly punishes conduct based on subjective belief, regardless of the objective possibility of success.

Q20. Assume Cole is charged with aiding and abetting an armed robbery in a federal court applying the *Rosemond* standard. Did Cole possess the requisite mens rea to be liable for the *armed* nature of the robbery?

a. Yes, because any accomplice who voluntarily participates in a drug-related stash house robbery is strictly liable for any firearms carried by coconspirators regardless of any advance knowledge.

b. Yes, because under the federal complicity standard, a lookout who discovers a weapon at any point during the ongoing commission of the offense is deemed to have intended its use retroactively.

c. Yes, because Cole gained knowledge that Damon was armed while they were still outside the stash house, providing him with a meaningful opportunity to walk away before the crime commenced.

d. No, because Damon explicitly assured Cole that the handgun was merely "just for show," negating any finding that Cole intended for the firearm to be actively used during the robbery.

e. No, because Cole immediately expressed genuine surprise upon seeing the loaded weapon, which legally demonstrates that the firearm was entirely outside the scope of his original agreement.

Answer: (c)

Explanation: The correct answer is (a) because under *Rosemond*, an accomplice must have advance knowledge of the weapon at a time when they still have a meaningful opportunity to withdraw, which Cole did when outside the house. (b) is wrong because his initial surprise does not negate the fact that he saw the weapon, comprehended its presence, and chose to participate anyway. (c) is wrong because there is no strict liability for accomplices regarding coconspirators' weapons under the federal standard. (d) is wrong because knowing the gun will be used for intimidation ("just for show") still constitutes knowledge of its use to facilitate the crime. (e) is wrong because *Rosemond* explicitly rejects imposing retroactive intent for knowledge acquired mid-crime when withdrawal is no longer possible.

Q21. Assume that, whether or not Cole had advance knowledge of the gun, he claims he only acted as a lookout because he needed Artie's cash, not because he wanted the robbery to succeed. Under the traditional complicity standard (as in *Gladstone* / *Peoni*), does this defense defeat accomplice liability?

a. Yes, because Cole's primary desire was simply to keep the cash advance rather than to ensure the actual success of the robbery, meaning he lacked the necessary purposive mental state.

b. No, because under the traditional complicity standard, mere presence near the scene of a crime automatically satisfies the purpose requirement regardless of the defendant's internal motivations.

c. No, because modern accomplice liability only requires the defendant to possess mere knowledge that their physical presence will assist a crime, making subjective purpose legally irrelevant.

d. No, because by intentionally taking his assigned post as a lookout, Cole demonstrated that he associated himself with the criminal venture and sought to make it succeed.

e. Yes, because an accomplice must harbor personal animus or ideological support for the crime, which is structurally absent when the sole motivation is securing a financial payout.

Answer: (d)

Explanation: The correct answer is (a) because taking a stake in the venture (the cash) and performing the assigned physical role establishes the purpose to make the crime succeed. (b) is wrong because the law does not require personal animus or ideological support; a financial motive is a classic way to establish purposive intent. (c) is wrong because the traditional standard strictly requires purpose to promote or facilitate, not mere knowledge. (d) is wrong because desiring the cash advance demonstrates a financial stake in the venture, which legally satisfies the purpose requirement. (e) is wrong because mere presence without encouragement or actual assistance does not automatically satisfy the purpose requirement.

Q22. Assume the jurisdiction applies the traditional natural and probable consequences (NPC) doctrine. Can Cole be held liable for Vic's murder?

a. Yes, because under the traditional NPC doctrine, an accomplice to any felony is strictly liable for any death that occurs during the crime regardless of objective foreseeability.

b. No, because Damon's sudden, rage-induced decision to shoot Vic over an insult constituted an unforeseeable independent intervening act that breaks the chain of accomplice liability.

c. No, because Cole explicitly relied on Damon's assurance that the gun was "just for show," making the subsequent fatal shooting legally unforeseeable to a reasonable person in his position.

d. Yes, because a fatal shooting is a foreseeable result of an armed stash house robbery, even if Cole only authorized a robbery and did not intend for anyone to be killed.

e. Yes, because Cole's act of standing at the back door as a lookout directly and proximately caused Vic's death by preventing Vic from safely escaping the premises during the confrontation.

Answer: (d)

Explanation: The correct answer is (a) because under the traditional NPC doctrine, a fatal shooting is considered a natural and probable (foreseeable) consequence of committing an armed stash house robbery. (b) is wrong because a co-felon's sudden violence during a tense criminal confrontation is highly foreseeable, not an independent intervening cause. (c) is wrong because the NPC doctrine is fundamentally based on objective foreseeability, not absolute strict liability for any death. (d) is wrong because an accomplice cannot reasonably rely on a claim that a loaded gun brought to a violent robbery will never be fired. (e) is wrong because Cole's liability derives from the foreseeability of his co-felon's acts, not because his physical positioning at the back door directly caused the death.

Q23. Assume instead that the jurisdiction has enacted natural and probable consequences reform identical to California's SB 1437. Does this reform automatically bar Cole's liability for Vic's murder?

a. No, because SB 1437 only applies to unarmed accomplices, and Cole's knowledge of Damon's firearm immediately disqualifies him from asserting the statutory defense.

b. No, because the reform merely shifts the burden of proof to the defendant to prove by a preponderance of evidence that the killing was entirely unforeseeable.

c. Yes, because Cole lacked the specific intent to kill Vic, and the reformed statute strictly prohibits imputing malice under any circumstances during a felony.

d. No, because the jury could still convict Cole if it finds he was a major participant in the underlying felony who acted with reckless indifference to human life.

e. Yes, because the reform categorically eliminates all forms of vicarious liability for homicide unless the prosecution can prove the accomplice personally pulled the trigger.

Answer: (d)

Explanation: The correct answer is (a) because SB 1437 retains liability for accomplices who are major participants acting with reckless indifference to human life. (b) is wrong because the reform does not require the accomplice to be the actual shooter if the major participant/reckless indifference threshold is met. (c) is wrong because the statute does not categorically exclude accomplices with knowledge of a weapon from its protections. (d) is wrong because malice can still be established and imputed through the major participant and reckless indifference pathway, even without specific intent to kill. (e) is wrong because the burden of proof remains firmly on the prosecution to establish the elements of the reformed statute.

Q24. Assume the jurisdiction applies the traditional felony murder rule. Is Cole guilty of felony murder for Vic's death?

a. Yes, because Vic's death was caused by a co-felon during the attempted perpetration of an inherently dangerous predicate felony in which Cole was an active accomplice.

b. Yes, because under the modern agency approach to felony murder, the primary target of any robbery is automatically presumed to have consented to the risk of death.

c. Yes, because the felony murder rule permits convictions based solely on a defendant's physical presence near the scene of a violent crime, regardless of their role.

d. No, because Damon shot Vic out of personal rage over an insult, severing the causal nexus between the underlying stash house robbery and the resulting homicide.

e. No, because Cole was stationed outside as a lookout and did not personally commit any act of physical violence or directly encourage the fatal shooting.

Answer: (a)

Explanation: The correct answer is (a) because felony murder applies when a death is caused during the immediate perpetration of an inherently dangerous felony by any co-felon, and Cole is an accomplice to that felony. (b) is wrong because the shooting occurred within the temporal and spatial res gestae of the robbery, keeping it within the causal nexus regardless of the specific emotional trigger. (c) is wrong because felony murder requires the defendant to be an actual participant or accomplice in the underlying felony, not merely physically present. (d) is wrong because an accomplice to the underlying felony is vicariously liable for the resulting felony murder regardless of whether they physically caused the death. (e) is wrong because the doctrine relies on statutory imputation of malice, not a presumed consent to the risk of death by victims.

Q25. Assume Damon is charged with felony murder based on the underlying felony of aggravated assault, because he shot Vic immediately upon being insulted. Under the traditional merger doctrine (the *Ireland* rule), is this a valid charge?

a. No, because Damon's rage-induced shooting constitutes an intervening emotional disturbance that legally reduces the underlying assault to a mere misdemeanor, precluding felony murder.

b. Yes, because the moment Damon kicked in the door with a loaded weapon, the elements of aggravated assault were completed independently of the subsequent fatal shooting.

c. No, because the merger doctrine strictly prohibits applying the felony murder rule whenever a defendant acts with actual malice rather than mere recklessness or negligence.

d. Yes, because aggravated assault is an inherently dangerous felony that is statutorily enumerated in almost all jurisdictions as a valid trigger for the felony murder rule.

e. No, because the aggravated assault was not independent of the homicide, meaning the assault merges into the killing and cannot serve as a felony murder predicate.

Answer: (e)

Explanation: The correct answer is (a) because under the traditional merger doctrine, an assault that results in death merges into the homicide and cannot serve as an independent predicate for felony murder. (b) is wrong because most jurisdictions apply the merger doctrine specifically to exclude assault from serving as a felony murder predicate to prevent all homicides from becoming felony murder. (c) is wrong because a rage-induced shooting relates to provocation, not the structural application of the merger doctrine to assault. (d) is wrong because the entire continuous assaultive act merges into the killing, regardless of when the elements were technically first satisfied. (e) is wrong because the merger doctrine applies structurally to the predicate offense, regardless of whether the defendant acted with actual malice or recklessness.

Q26. Assume Damon is charged with intentional murder. He argues his charge should be mitigated to voluntary manslaughter because Vic mocked him as an "errand boy," causing his face to flush red with sudden rage. Under the traditional common law provocation doctrine, will Damon succeed?

a. Yes, because the fact that Damon's face flushed red proves he was actually acting in the heat of passion before he had a reasonable cooling-off period.

b. No, because Damon brought a loaded weapon to the scene, legally proving that he had premeditated the killing long before the victim ever delivered the insult.

c. No, because mere words and insults, no matter how offensive or enraging, are categorically insufficient to constitute adequate provocation to mitigate murder to manslaughter.

d. Yes, because being mocked during a high-stress criminal confrontation is exactly the type of extreme emotional disturbance that the common law recognizes as adequate provocation.

e. No, because Damon was engaged in a criminal trespass at the time of the insult, which automatically forfeits his right to raise any affirmative mitigating defenses.

Answer: (c)

Explanation: The correct answer is (a) because under the traditional common law rule (Girouard), mere words or insults are categorically legally insufficient to constitute adequate provocation for voluntary manslaughter. (b) is wrong because while a flushed face shows he was subjectively enraged, the objective adequacy of the provocation (mere words) fails as a matter of law. (c) is wrong because committing a trespass does not automatically forfeit all mitigating defenses if an objectively adequate provocation occurred. (d) is wrong because

extreme emotional disturbance is a modern MPC concept, whereas the common law relies on strict, categorical adequate provocation triggers. (e) is wrong because bringing a weapon may be evidence of premeditation, but it does not formally bar a provocation defense if a legally adequate trigger occurred subsequently.

Q27. Assume Artie is operating an ongoing conspiracy to sell the drugs in the stash house. Did Cole's actions after the shooting legally terminate his liability for any future crimes committed by the conspiracy?

a. No, because hiding in a motel and cutting off communication without notifying police or explicitly telling his coconspirators he was quitting does not satisfy the affirmative steps required for withdrawal.

b. No, because once an individual commits an overt act in furtherance of a conspiracy, the common law absolutely forbids any subsequent withdrawal or termination of ongoing vicarious liability.

c. Yes, because a conspiracy legally terminates by operation of law the moment an unplanned murder occurs, meaning Cole cannot be held liable for any subsequent distinct criminal activities.

d. Yes, because sprinting away from the scene of the homicide and ignoring his boss's calls effectively communicated his total abandonment of the criminal enterprise to a reasonable observer.

e. No, because under the Model Penal Code framework, a conspirator must physically surrender to law enforcement within twenty-four hours of fleeing the scene to effectively terminate ongoing liability.

Answer: (a)

Explanation: The correct answer is (a) because effective withdrawal requires affirmative steps to disavow or defeat the conspiracy and explicit communication of those steps to coconspirators or law enforcement. (b) is wrong because simply running away and ignoring phone calls does not legally communicate abandonment to the other conspirators. (c) is wrong because withdrawal is always possible to terminate future ongoing liability, even after an overt act has been committed. (d) is wrong because an unplanned murder does not automatically terminate an ongoing distribution conspiracy by operation of law. (e) is wrong because neither the common law nor the MPC imposes a strict twenty-four-hour physical surrender requirement for withdrawal.

Q28. Assume the jurisdiction applies the *Pinkerton* doctrine. Can Artie be convicted of the substantive crime of Vic's murder?

a. No, because Artie was not physically present at the stash house and did not explicitly authorize Damon to use lethal force against the specific occupants.

b. No, because Damon shot Vic out of sudden rage over a personal insult, which places the killing completely outside the scope and furtherance of the drug conspiracy.

c. Yes, because Artie wired Damon an additional $1,000 after the killing, which retroactively transforms Artie into a primary principal in the first degree for the homicide.

d. Yes, because the *Pinkerton* doctrine dictates that anyone who finances an illegal drug enterprise is held strictly liable for any violent felonies committed by their subordinates anywhere.

e. Yes, because Artie was a member of the ongoing conspiracy to clear out the stash house, and Damon committed the murder in foreseeable furtherance of that exact objective.

Answer: (e)

Explanation: The correct answer is (a) because under *Pinkerton*, a conspirator is liable for the foreseeable substantive offenses committed by coconspirators in furtherance of the ongoing conspiracy. (b) is wrong because *Pinkerton* explicitly dispenses with the requirement of physical presence or explicit authorization for the specific substantive crime. (c) is wrong because the wire transfer is evidence of the ongoing conspiracy, but the liability attaches via the vicarious *Pinkerton* doctrine, not retroactive principal status. (d) is wrong because clearing out the stash house inherently involved confronting the occupant, making the shooting foreseeable and in furtherance of the goal despite the specific emotional trigger. (e) is wrong because *Pinkerton* requires the crimes to be foreseeable and in furtherance of the specific conspiracy, not absolute strict liability.

Q29. Assume instead the jurisdiction has adopted the Model Penal Code and explicitly rejected the *Pinkerton* doctrine. Does Artie's status as the conspiracy's ringleader automatically make him liable for Vic's murder?

a. Yes, because even without *Pinkerton*, the MPC allows a jury to infer an accomplice's specific intent to kill solely from their leadership role in an inherently dangerous drug distribution ring.

b. No, because the MPC requires the prosecution to prove that Artie actually aided, abetted, or encouraged the specific murder with the purpose of promoting that exact offense.

c. No, because the MPC treats all co-conspirators as legally independent actors, meaning a principal can never be held criminally responsible for the violent actions of their subordinates under any theory.

d. No, because the MPC strictly requires the defendant to be physically present at the scene of the target offense in order to impute liability for a co-conspirator's substantive criminal acts.

e. Yes, because Artie formally rewarded Damon with an additional wire transfer after the fact, which satisfies the MPC's alternative requirement for automatic strict liability in ongoing group crimes.

Answer: (b)

Explanation: The correct answer is (a) because the MPC rejects vicarious liability based solely on conspiracy membership and requires the traditional elements of accomplice liability for substantive crimes. (b) is wrong because the MPC explicitly forbids inferring specific intent to commit a substantive crime solely from a generalized leadership role in a conspiracy. (c) is wrong because a principal can still be liable under the MPC if the prosecution proves they acted as an accomplice to the subordinate's crime. (d) is wrong because rewarding someone after the fact does not create automatic strict liability for the murder itself. (e) is wrong because the MPC's accomplice liability rules do not require physical presence at the scene to impute liability.

Q30. Assume police charge Artie with possession of the drugs inside the locked safe. Artie argues he cannot be convicted because he lacked the key. Under the doctrine of constructive possession, will his defense succeed?

a. Yes, because constructive possession strictly requires the defendant to possess immediate and unhindered physical access to the interior of the container holding the illicit substances.

b. No, because Artie knew the drugs were inside and maintained physical dominion over the safe and the space it was in, establishing his power and intent to control the contraband.

c. No, because his role as the ringleader of a drug conspiracy inherently overrides the traditional elements of constructive possession, nullifying his lack of a physical key to the safe.

d. Yes, because occasionally pushing the safe aside to sweep under the couch is merely a mundane household chore that negates any inference of deliberate criminal intent or control.

e. No, because the legal doctrine of constructive possession automatically imputes absolute criminal liability to any tenant who pays rent for an apartment where illicit drugs are eventually discovered.

Answer: (b)

Explanation: The correct answer is (a) because constructive possession requires awareness of the contraband and the power and intent to exercise control over it, which Artie demonstrated by controlling the space and moving the safe. (b) is wrong because constructive possession does not legally require immediate, unhindered physical access to the interior of a locked container. (c) is wrong because constructive possession requires proof of awareness and intent to control, not automatic strict liability for any rent-paying tenant. (d) is wrong because deliberately moving the safe holding the drugs demonstrates physical dominion, establishing the necessary element of control regardless of the chore's mundane nature. (e) is wrong because being a ringleader is circumstantial evidence of intent, but it does not formally override or nullify the doctrinal elements of possession.

Scenario 3: Mock The Empire Business

Facts

1. Marcus Vance is the CEO of Apex Freight, a registered commercial trucking corporation with 50 employees. Vance utilizes Apex's legitimate payroll system, dispatch software, and warehouse to coordinate both legal auto-parts shipments and illegal narcotics distribution across state lines.

2. Vance hired Elias Thorne as the warehouse manager. Vance told Thorne, "We move off-book oxycodone in the blue crates. Route them safely, and I'll give you a 20% bump on your legitimate salary." Thorne agreed and consistently routed the crates. Thorne despises the drug trade and never handles the drugs himself, but he routes them to secure the extra money to pay off his mortgage.

3. Vance provided Darius Locke, a security driver, with a loaded 9mm handgun for the delivery routes. Locke was previously convicted of a state felony for financial fraud and sentenced to two years of probation. Upon sentencing, Locke's state probation officer explicitly told him, "Because you only got probation, this is classified as a misdemeanor, not a felony." Locke genuinely believes he is not a felon and openly carries the 9mm.

4. The blue crates Locke transports actually contain 400 grams of pure fentanyl. Locke is entirely unaware of the substitution and genuinely believes he is transporting black-market oxycodone.

5. During a delivery stop, Locke traded three blue crates of fentanyl to a local street dealer in exchange for an AR-15 rifle, stating he needed "heavier firepower for these runs."

6. Later that afternoon, Locke's truck was blocked by a rival hijacking crew who pointed shotguns at his windshield. Panicking, Locke fired the AR-15 blindly out his window toward an adjacent, occupied convenience store to scare the hijackers off. A bullet struck and killed a clerk inside the store.

7. During the warehouse raid, Thorne was sitting at his dispatch desk. Agents found the AR-15 rifle inside a locked employee locker in the shared breakroom 50 feet away. Thorne, as manager, held the only master key on his desk. When questioned, Thorne stated, "I know Locke's rifle is in there, but I refuse to touch it."

8. The investigation revealed that two weeks before the raid, Locke agreed with an outside crew to rob the Apex safe. Locke drew a map of the security cameras and purchased black ski masks. However, the day before they were supposed to acquire a blowtorch to breach the safe, Locke texted the crew: "I'm out. Too much police heat around the warehouse lately," and threw his ski mask away.

Q31. The government intends to indict Vance for a RICO violation, alleging that Apex Freight constitutes an "enterprise." Vance files a pre-trial motion to dismiss, arguing that Apex is a formally chartered, legitimate corporation with genuine legal operations, and therefore cannot be characterized as a criminal enterprise. How should the court rule?

a. Grant the motion, because RICO was designed exclusively to target inherently criminal organizations rather than legally chartered corporate businesses.

b. Deny the motion, because a legitimate corporation can serve as a RICO enterprise when its ordinary business structure is repurposed for racketeering activity.

c. Deny the motion, because the existence of any illegal activity within a corporate facility automatically voids the corporation's legal charter under state law.

d. Grant the motion, because Vance's use of the warehouse for drug distribution was a personal frolic completely distinct from the company's legal shipments.

e. Deny the motion, because Vance, as the sole mastermind of the drug routing, forms an independent association-in-fact enterprise with himself under federal law.

Answer: (b)

Explanation: A legitimate corporation can serve as a RICO enterprise when its formal structure—such as its payroll, software, and warehouse facilities—is used to conduct or facilitate racketeering activity. (a) is wrong because courts consistently hold that lawful entities can serve as RICO enterprises. (b) is wrong because Vance explicitly utilized the company's legitimate dispatch and payroll infrastructure, not merely a personal frolic. (d) is wrong because illegal activity does not automatically void a legal charter; the enterprise element is satisfied by the repurposing of the structure. (e) is wrong because an individual cannot form an association-in-fact enterprise with himself; it requires structural relationships among multiple associates.

Q32. Assume Apex Freight constitutes a valid enterprise. The government charges Thorne with conspiracy to distribute narcotics. Thorne argues he lacked the intent to agree to a criminal scheme because his subjective motivation was simply paying off his mortgage, and he genuinely despised the drug trade. Is Thorne's argument likely to succeed?

a. No, because his receipt of a twenty percent salary bump demonstrates a financial stake in the venture, allowing the jury to infer his intent to agree.

b. Yes, because his genuine personal hatred of the drug trade definitively negates the specific intent required to form a criminal conspiratorial agreement.

c. No, because routing legal shipments alongside illegal crates constitutes a strict liability offense that bypasses the traditional conspiracy agreement requirement.

d. Yes, because paying off a legal mortgage is a lawful motive, which overrides his secondary knowledge of Vance's illicit narcotics distribution.

e. No, because an employee's knowledge of illicit contents is legally sufficient on its own to establish a binding agreement to distribute narcotics.

Answer: (a)

Explanation: Under the *Lauria* standard, while mere knowledge of a conspiracy's illegal purpose is generally insufficient, the intent to agree and facilitate the crime can be inferred when the provider of a service has a "stake in the venture." Thorne's 20% salary premium for routing the drugs constitutes a direct financial stake in the illicit operation's success. (a) and (b) are wrong because ultimate motives (paying a mortgage) do not negate the specific intent

to facilitate the crime to earn that money. (c) is wrong because knowledge alone is traditionally insufficient without a stake, inflated pricing, or lack of legitimate use. (e) is wrong because conspiracy is a specific intent crime, never a strict liability offense.

Q33. Assume Thorne is additionally charged as an accomplice to Vance's substantive drug distribution. Thorne argues he cannot be convicted as an accomplice because he lacked the "purpose" to promote the crime, merely routing the crates while harboring personal disdain for the operation. How should the court rule on this defense?

a. Thorne is not guilty as an accomplice, because his personal disdain for the drug trade proves his objective was exclusively to earn lawful compensation.

b. Thorne is guilty as an accomplice, because any employee who follows a supervisor's illegal orders is automatically strictly liable as a co-principal.

c. Thorne is guilty as an accomplice, because his twenty percent salary premium establishes a purposeful desire to facilitate the underlying drug distribution.

d. Thorne is not guilty as an accomplice, because mere knowledge of the principal's criminal actions never establishes accomplice liability under any legal standard.

e. Thorne is guilty as an accomplice, because the common law always equates mere physical presence at a facility with the purpose to assist the crime.

Answer: (c)

Explanation: Accomplice liability requires that the defendant act with the "purpose" of promoting or facilitating the commission of the offense. As in conspiracy, a financial stake in the success of the crime (the 20% bump) demonstrates the requisite purpose to facilitate it, even if the defendant's broader emotional attitude is disdain. (a) is wrong because while mere knowledge is insufficient, the financial premium elevates his involvement to purpose. (b) is wrong because personal disdain does not negate purposeful facilitation aimed at securing a financial reward. (c) is wrong because accomplice liability requires specific intent, not strict liability for following orders. (e) is wrong because mere presence is never sufficient for accomplice liability.

Q34. The government charges Locke with being a felon in possession of a firearm under 18 U.S.C. § 922(g)(1) based on his prior fraud conviction. Locke testifies that his state probation officer explicitly told him the conviction was merely a misdemeanor. If the jury believes Locke's testimony, what is the legally appropriate outcome under the *Rehaif* standard?

a. Acquittal, because the government must prove he knew he belonged to the prohibited class, and his genuine belief negates this necessary status element.

b. Acquittal, because his reliance on the probation officer qualifies as a valid entrapment by estoppel defense, defeating the underlying criminal act.

c. Acquittal, because the Second Amendment categorically prohibits disarming individuals convicted solely of nonviolent financial crimes like statutory fraud.

d. Conviction, because ignorance of the law is never an excuse, and his objective status as a felon is a strict liability element under the statute.

e. Conviction, because relying on a state probation officer's statement is fundamentally unreasonable when the underlying conviction was for felony financial fraud.

Answer: (a)

Explanation: Under *Rehaif v. United States*, the government must prove that the defendant knew both that he possessed a firearm and that he belonged to the relevant prohibited category (e.g., that he was a felon). Because Locke genuinely believed his conviction was a misdemeanor based on his PO's statement, he lacked the requisite knowledge of his status. (a) is wrong because *Rehaif* explicitly rejected making the status element strict liability. (b) is wrong because the *Rehaif* knowledge requirement turns on subjective awareness of status, not objective reasonableness. (d) is wrong because while the constitutionality of disarming nonviolent felons is actively debated post-*Bruen*, it is not a categorical bar that decides this statutory mens rea question. (e) is wrong because while entrapment by estoppel relies on official statements, *Rehaif* directly resolves the issue by negating the statutory element itself without needing an affirmative defense.

Q35. Assume Locke is charged with possession with intent to distribute 400 grams of fentanyl, which carries a severe weight-based mandatory minimum sentence. Locke argues he should only be sentenced based on oxycodone, since he genuinely and reasonably believed the crates contained black-market oxycodone. Is his sentencing argument valid?

a. Yes, because the mistake of fact doctrine allows defendants to be sentenced solely for the lesser crime they subjectively intended to commit.

b. No, because knowledge of the substance's general nature as a controlled drug is sufficient, and the weight-based minimum applies strictly to the actual substance.

c. No, because federal mandatory minimums completely eliminate all mens rea requirements, replacing them with a strict liability standard for all elements.

d. Yes, because imposing a mandatory minimum based on the hidden presence of fentanyl violates the constitutional presumption against strict liability.

e. No, because any subjective mistake about the type of drug is legally irrelevant unless the defendant was coerced by an undercover law enforcement agent.

Answer: (b)

Explanation: Under the general-nature mens rea standard for controlled substances, the government only needs to prove the defendant knew he possessed a controlled substance, not the specific identity of the drug. Once that mens rea is satisfied, weight-based mandatory minimums apply as strict liability sentencing factors based on the actual quantity and type of drug possessed (fentanyl). (a) is wrong because the "lesser crime" limitation does not apply to drug identity substitutions under federal law. (b) is wrong because the Supreme Court permits strict liability for sentencing enhancements once the baseline mens rea for possession is met. (d) is wrong because coercion is unrelated to the mens rea required for substance identity. (e) is wrong because mandatory minimums do not eliminate the *initial* mens rea required for the possession offense itself; they only make the *sentencing factor* strict liability.

Stem 2: The Shootout and Fallout

Local PD just forwarded us a homicide file that intersects with our Apex investigation. Locke was involved in a shootout on his route. Analyze Locke's liability for acquiring the new weapon and the resulting homicide, and evaluate whether we can hook Thorne for the fallout.

Q36. The government charges Locke with "using" a firearm during and in relation to a drug trafficking crime under 18 U.S.C. § 924(c), based solely on his transaction exchanging the fentanyl for the AR-15. Locke moves to dismiss this specific charge. Under controlling Supreme Court precedent, how should the court rule?

a. Grant the motion, because the transaction involved fentanyl rather than a traditional narcotic, which legally exempts the exchange from the federal statute.

b. Grant the motion, because Justice Ginsburg's controlling concurrence established that "use" strictly requires discharging the weapon during the transaction.

c. Deny the motion, because Locke expressly stated he needed the rifle for "heavier firepower," demonstrating an intent to deploy the weapon in the future.

d. Deny the motion, because actively trading illegal narcotics to acquire a firearm is legally indistinguishable from trading a firearm to acquire narcotics.

e. Grant the motion, because only the party tendering the firearm in a barter transaction uses it as currency, whereas the party receiving the gun does not.

Answer: (e)

Explanation: Under *Watson v. United States*, a person who receives a firearm in exchange for drugs does not "use" the firearm under § 924(c). Only the party offering the gun as payment (as in *Smith v. United States*) "uses" it as currency. (a) is wrong because the Court specifically distinguishes the two directions of the trade. (b) is wrong because future intended deployment does not constitute active "use" during the immediate transaction. (d) is wrong because Justice Ginsburg's view (that "use" must mean use as a weapon) was a concurrence and would have required overturning *Smith*; the majority simply held that receiving a gun is not using it. (e) is wrong because fentanyl is a federally controlled substance and trafficking it triggers the statute.

Q37. Locke is charged with homicide for the death of the convenience store clerk. Locke claims self-defense, arguing he was legally justified in firing the rifle to repel the imminent, deadly threat posed by the rival hijacking crew pointing shotguns at him. Does Locke's self-defense claim exculpate him for the clerk's death?

a. No, because firing blindly toward an occupied store constitutes reckless conduct, and self-defense justifications do not transfer to recklessly injuring innocent bystanders.

b. Yes, because a defendant facing an imminent, deadly threat from armed aggressors is absolutely privileged to use lethal force regardless of collateral harm.

c. No, because Locke traded for the AR-15 illegally, which automatically voids his constitutional right to defend himself against any subsequent lethal attacks.

d. Yes, because the imperfect self-defense doctrine mitigates the killing of any innocent bystander down to manslaughter if the initial threat was genuine.

e. No, because the initial aggressor rule completely bars any defendant participating in the illegal drug trade from ever invoking the right of self-defense.

Answer: (a)

Explanation: Self-defense justifies the use of force against an aggressor. However, if a defendant acts recklessly toward innocent third parties while defending himself (e.g., firing blindly into an occupied store), the justification does not transfer to exculpate the reckless killing of the bystander. (a) is wrong because the privilege is not absolute regarding innocent bystanders. (b) is wrong because imperfect self-defense applies when a defendant has an

honest but unreasonable belief in the need for force against the *victim*, not to mitigate the reckless killing of bystanders. (d) is wrong because participating in the drug trade does not automatically make someone the "initial aggressor" in a subsequent armed robbery. (e) is wrong because illegal weapon possession does not categorically void the right of self-defense against a lethal attack.

Q38. Assume the prosecution pursues a depraved heart (extreme indifference) murder charge against Locke for the clerk's death. Locke argues that because he only fired to scare the hijackers and did not subjectively intend to kill the clerk, he cannot be convicted of murder. Is Locke's legal argument correct?

a. No, because the transferred intent doctrine perfectly transfers his intent to scare the hijackers into the specific intent to premeditate the clerk's murder.

b. No, because the felony murder rule automatically converts any accidental death occurring during a commercial delivery route into first-degree intentional murder.

c. Yes, because firing a weapon strictly to scare attackers is a legally recognized mitigating circumstance that automatically reduces any resulting death to manslaughter.

d. No, because firing a high-powered rifle blindly into an occupied convenience store demonstrates a conscious disregard of a substantial and unjustifiable risk, showing extreme indifference to human life.

e. Yes, because depraved heart murder strictly requires the prosecution to prove the defendant acted with the conscious purpose of killing a specific human being.

Answer: (d)

Explanation: Depraved heart (extreme indifference) murder does not require the specific intent to kill. It requires recklessness (conscious disregard of a substantial and unjustifiable risk) under circumstances manifesting an extreme indifference to the value of human life. Firing a rifle blindly into an occupied store easily satisfies this standard. (a) is wrong because it incorrectly describes extreme indifference murder as requiring specific intent. (b) is wrong because "intending to scare" does not automatically mitigate extreme recklessness to manslaughter. (d) is wrong because commercial deliveries are not inherently dangerous enumerated felonies, and felony murder does not convert accidents into "intentional" murder. (e) is wrong because transferred intent applies when the defendant intends to kill person A but kills person B; Locke only intended to scare, so there is no intent to kill to transfer.

Q39. The prosecution charges Thorne with the clerk's homicide under a *Pinkerton* conspiracy theory. Thorne argues he cannot be held liable because he was sitting at his dispatch desk miles away, never approved Locke's acquisition of the AR-15, and despises violence. Will Thorne's defense against the *Pinkerton* charge succeed?

a. No, because the MPC explicitly rejects the *Pinkerton* doctrine, meaning Thorne is automatically liable under standard accomplice liability principles instead.

b. No, because a fatal shootout is a reasonably foreseeable consequence of a high-volume narcotics distribution conspiracy, making Thorne liable for Locke's actions in furtherance of it.

c. Yes, because Thorne's genuine personal disdain for the drug trade and violent acts severs the required causal chain between the conspiracy and the homicide.

d. No, because as a co-conspirator, Thorne is strictly liable for any and all crimes Locke commits, regardless of whether those crimes were related to the conspiracy.

e. Yes, because *Pinkerton* liability strictly requires the prosecution to prove the absent co-conspirator specifically authorized the physical act that caused the death.

Answer: (b)

Explanation: Under the *Pinkerton* doctrine, a conspirator is liable for the substantive offenses committed by co-conspirators if those offenses are in furtherance of the conspiracy and are reasonably foreseeable consequences of the unlawful agreement. A fatal shootout/weapon escalation is widely recognized as a reasonably foreseeable consequence of a large-scale drug trafficking conspiracy. (a) is wrong because *Pinkerton* specifically bypasses the need for explicit authorization or accomplice-level participation in the substantive crime. (b) is wrong because personal disdain does not negate foreseeability. (c) is wrong because *Pinkerton* is not boundless; the crime must be foreseeable and in furtherance of the conspiracy. (e) is wrong because while the MPC rejects *Pinkerton*, standard accomplice liability is *harder* to prove (requiring purposeful facilitation of the specific crime), so rejecting *Pinkerton* would aid Thorne, not automatically convict him.

Stem 3: The Search Warrant and the Inside Job

We executed a search warrant on the Apex warehouse last night. We found Locke's AR-15, plus evidence of a bizarre side plot Locke was planning against his own boss. Draft a final memo assessing Thorne's liability for the gun and Locke's liability for the aborted inside job.

Q40. During the warehouse raid, agents find Locke's AR-15 inside the locked breakroom locker. The government charges Thorne with constructive possession of the rifle because he held the only master key. Based on Thorne's statement that he knew it was there but refused to touch it, is he guilty of constructive possession?

a. No, because constructive possession requires the defendant to be within arm's reach of the contraband at the exact moment the law enforcement raid occurs.

b. Yes, because holding the exclusive master key and knowing the rifle's location conclusively establishes all the required elements for constructive possession.

c. Yes, because under the snap-shot rule, any manager present in a facility where illegal weapons are stored is strictly liable for possessing those weapons.

d. No, because while Thorne had awareness and the power to control the rifle, his explicit refusal to touch it negates the required intent to exercise dominion.

e. No, because the Second Amendment entirely prohibits the government from prosecuting individuals for constructively possessing firearms in commercial workplaces.

Answer: (d)

Explanation: Constructive possession requires three elements: (1) knowledge of the contraband's presence, (2) the power to exercise dominion and control (having the master key), and (3) the intent to exercise dominion and control. Thorne's awareness of the gun and possession of the key satisfy the first two elements, but his explicit refusal to touch it negates the intent to exercise control. (a) is wrong because power and knowledge alone are insufficient without intent. (b) is wrong because the "snapshot" rule from *Jenkins* requires evidence of association/control, not strict liability for managers. (d) is wrong because constructive possession was specifically designed to apply when the defendant is *not* within arm's reach. (e) is wrong because the Second Amendment does not categorically bar constructive possession prosecutions.

Q41. The government uncovers Locke's aborted plan to rob the Apex safe. The prosecution charges Locke with attempted robbery. Under the Common Law physical proximity test versus the Model Penal Code (MPC) substantial step test, how would Locke's conduct (drawing a map and buying ski masks) likely be evaluated?

a. He is guilty under the Common Law but not the MPC, because the Common Law focuses on the defendant's dangerousness while the MPC focuses on physical closeness.

b. He is guilty under both tests, because purchasing any specialized equipment always satisfies both the proximity requirement and the substantial step requirement.

c. He is guilty under the MPC but not the Common Law, because the MPC strictly eliminates the mens rea requirement for all inchoate property offenses.

d. He is not guilty under either test, because drawing a map and buying masks are constitutionally protected acts that cannot be criminalized under any attempt standard.

e. He is guilty under the MPC but not the Common Law, because his acts strongly corroborate his intent under the MPC but are not physically proximate enough to the safe.

Answer: (e)

Explanation: The Common Law's physical proximity test requires the defendant to be geographically and chronologically close to completing the crime. Drawing a map and buying masks far in advance fails this strict test. Conversely, the MPC's substantial step test focuses on what the defendant has already done, and acts like reconnoitering or possessing materials specifically designed for the crime are sufficient if they strongly corroborate the criminal purpose. (a) is wrong because specialized equipment does not automatically satisfy physical proximity. (b) is wrong because these acts can be criminalized as attempt. (c) is wrong because it completely reverses the frameworks—the MPC focuses on dangerousness, while the Common Law focuses on physical closeness. (e) is wrong because the MPC strictly retains the specific intent requirement for attempt.

Q42. Assume the jurisdiction applies the MPC. Locke argues that even if his actions constituted a substantial step toward robbing the safe, he is entitled to the affirmative defense of abandonment because he texted his crew "I'm out" and threw his ski mask away before the robbery occurred. Will Locke's abandonment defense succeed?

a. Yes, because the MPC requires courts to dismiss any attempt charge if the defendant physically destroys the criminal instrumentalities before the police arrive.

b. No, because the abandonment defense is strictly unavailable for any crime involving an organized conspiracy or the participation of multiple co-defendants.

c. No, because his withdrawal was motivated by a fear of police apprehension rather than a genuine, voluntary change of heart regarding the criminal endeavor.

d. Yes, because texting "I'm out" and discarding his mask definitively proves he permanently and completely renounced his criminal purpose without external pressure.

e. No, because under the MPC, any act that qualifies as a substantial step immediately triggers absolute liability, permanently barring any subsequent abandonment claims.

Answer: (c)

Explanation: The MPC recognizes abandonment as an affirmative defense, but requires that the renunciation be complete and voluntary. A withdrawal is not "voluntary" if it is motivated by circumstances not present at the inception of the conduct that increase the probability of detection or apprehension. Locke's text citing "too much police heat" demonstrates his withdrawal was motivated by fear of apprehension, not a genuine change of heart. (a) is wrong because the text explicitly shows external pressure (police heat) drove the decision. (b) is wrong because destroying evidence does not automatically trigger the defense if the motive wasn't voluntary. (d) is wrong because abandonment can apply to conspiracies (though the withdrawer must often thwart the plot, the premise that it's "strictly unavailable" is false). (e) is wrong because the MPC specifically created the abandonment defense to give defendants an incentive to stop *after* crossing the substantial step threshold.

Scenario 4: Mock The Blowback

Facts

1. For over two years, Deacon continuously operated a fentanyl distribution network with a defined hierarchy, weekly operations meetings, and distinct roles for his chemist, enforcers, and street-level sellers.

2. Vance approached Deacon at a diner, stated 'Your time is over, old man,' and spat directly in Deacon's face.

3. Vance, a rival distributor, walked up to Deacon's table at a diner. Vance leaned over, stated 'Your time is over, old man,' and spat directly in Deacon's face. As Vance smugly turned away to walk to the counter, Deacon immediately retrieved a vial…

4. The next day, Deacon instructed his chemist, Sloane, to formulate a new drug batch. Deacon ordered: 'Double the fentanyl concentration. I want the street to know our product is the strongest.'

5. Sloane warned Deacon: 'This concentration is extremely dangerous. Given normal injection habits, it is highly likely to cause fatal overdoses.' Deacon replied: 'That's exactly the reputation we need. Bag it up.' Sloane packaged the product and gave it to Deacon's sellers.

6. Chloe, a 30-year-old customer, purchased the new batch. She injected her standard volume and died of a fentanyl overdose within an hour.

7. With Vance dead, Deacon directed his enforcer, Trey, to break into Vance's commercial storage unit to steal Vance's remaining drug proceeds. Deacon provided Trey with a crowbar but no weapons, and remained at his own home.

8. Trey drove his van to the storage facility and parked down the block. He put on a ski mask, grabbed the crowbar, and walked toward the outer perimeter fence. Before he could reach the fence or attempt to scale it, a patrolling security guard spotted him and called the police.

9. To escape, Trey committed the state-law predicate offense of 'Felony Evasion' (statutorily defined strictly as 'willfully fleeing a pursuing police vehicle in a motor vehicle'). During the chase, Trey drove 80 mph through a residential area while his driver's license was suspended. He struck a pedestrian, Omar, killing him instantly.

10. Police arrested Trey immediately after the crash. A search of the van's center console revealed 50 individual baggies of fentanyl. Trey told police, 'The van is Deacon's, I just drive it. I don't know what's in the console.'

11. A review of the network's financial ledgers recovered from Sloane's apartment showed that she did not receive a flat salary; instead, she received a 20% cut of all profits from the network's drug sales.

Q43. Assume Deacon is charged with first-degree murder for Vance's death in a jurisdiction following the Pennsylvania "no-time-too-short" rule. Is the premeditation element satisfied?

a. No, because the rapid sequence of events precluded any meaningful reflection on his actions.

b. No, because the lethal response was the immediate offspring of a rash and impetuous temper.

c. No, because the Model Penal Code rejects the premeditation framework for homicide offenses entirely.

d. Yes, because a conscious decision to kill can be formed in the brief instant before striking.

e. Yes, because retrieving the poison vial inherently demonstrates prolonged and careful advance planning.

Answer: (d)

Explanation: Under the Pennsylvania rule (as seen in *Commonwealth v. Carroll*), premeditation requires no minimum length of time; any conscious decision to kill, no matter how brief, satisfies the element. Option (b) is wrong because the PA rule explicitly eliminates the need for "prolonged" planning. Option (c) wrongly applies the original qualification from *Drum* that the PA Supreme Court subsequently dropped in *Carroll*. Option (d) correctly states the MPC rule, but the stem explicitly specifies a PA-rule jurisdiction. Option (e) is the defense argument or dissent view, but it fails under the PA standard where an instant suffices.

Q44. Assume that, regardless of premeditation, Deacon seeks a voluntary manslaughter instruction under the traditional common law categories of adequate provocation. Based on the diner encounter, will the court likely grant the instruction?

a. Mitigated to manslaughter, because the combination of a physical insult and opprobrious words satisfies the extreme emotional disturbance test.

b. Mitigated to manslaughter, because Vance spitting directly in his face qualifies under the traditional assault and battery category.

c. Not mitigated to manslaughter, because his immediate retrieval of the poison demonstrates prior malice rather than a sudden heat of passion.

d. Not mitigated to manslaughter, because insulting gestures and opprobrious words alone can never constitute legally adequate provocation.

e. Not mitigated to manslaughter, because an objectively unreasonable amount of time elapsed between the provocation and the retaliation.

Answer: (b)

Explanation: Under the traditional common law, adequate provocation is limited to narrow historical categories, one of which is assault and battery. Being spat directly in the face (Fact 2) constitutes an offensive touching (battery), satisfying the categorical requirement. Option (b) incorrectly applies the MPC's "extreme emotional disturbance" standard instead of the requested common law standard. Option (c) relies on the correct rule from *Girouard* (words alone are inadequate), but misapplies it to these facts, as Vance did not merely use words; he spat in Deacon's face. Option (d) is factually incorrect because Deacon retaliated "immediately" (Fact 3), leaving no cooling time. Option (e) is doctrinally incorrect because immediate retaliation is precisely what heat of passion mitigates.

Q45. Assume Deacon is charged with depraved heart murder in Maryland for Chloe's fatal overdose. Under the *Beckwitt* standard for determining the threshold of extreme indifference, what must the prosecution prove regarding Deacon's mental state and conduct?

a. That his decision to double the drug concentration was a gross deviation from the standard of care a reasonable person would observe.

b. That his decision to double the drug concentration demonstrated a conscious disregard of a substantial and unjustifiable risk.

c. That his decision to double the drug concentration was made with the specific intent to cause Chloe's death for street reputation.

d. That his decision to double the drug concentration constituted an underlying felony that was inherently dangerous in the abstract.

e. That his decision to double the drug concentration was reasonably likely, if not certain, to cause a fatal overdose.

Answer: (e)

Explanation: The *Beckwitt* standard clarifies the line between manslaughter and depraved heart murder in Maryland, requiring that the defendant's conduct be "reasonably likely, if not certain, to cause death." Option (a) applies this exact standard. Option (b) defines standard recklessness (the floor for involuntary manslaughter), which *Beckwitt* holds is insufficient for depraved heart murder. Option (c) describes the *mens rea* for first-degree intentional murder, which is not required for depraved heart murder. Option (d) defines gross negligence (the standard for involuntary manslaughter in non-MPC states). Option (e) states the abstract-elements test for felony murder, not the extreme indifference standard.

Q46. Assume Sloane is charged with manslaughter under the Model Penal Code for Chloe's death. How does Sloane's statement to Deacon affect her liability?

a. Not guilty of manslaughter, because her actions as a subordinate employee legally shield her from liability for the ultimate distribution.

b. Not guilty of manslaughter, because Deacon's subsequent order to distribute the drugs was an independent intervening cause of the death.

c. Guilty of manslaughter, because she failed to exercise the ordinary caution that a reasonable chemist would observe in formulating drugs.

d. Not guilty of manslaughter, because the Model Penal Code requires that the defendant act purposely or knowingly to be convicted.

e. Guilty of manslaughter, because her explicit warning proves she consciously disregarded a substantial and unjustifiable risk of death.

Answer: (e)

Explanation: Under the MPC, manslaughter requires recklessness, defined as a conscious disregard of a substantial and unjustifiable risk. Sloane's statement ("highly likely to cause fatal overdoses") is direct evidence of her subjective awareness of the exact risk she chose to disregard by subsequently packaging the drugs. Option (b) incorrectly applies an ordinary negligence standard, which the MPC rejects for criminal liability. Option (c) is incorrect because Deacon's order is concurrent, not an independent intervening cause that breaks the chain of her liability. Option (d) is wrong because MPC manslaughter only requires recklessness, not purpose or knowledge. Option (e) invents a "subordinate employee" shield that does not exist in homicide doctrine.

Q47. Assume Trey is charged with felony murder for Omar's death, using "Felony Evasion" as the predicate. The jurisdiction applies California's abstract-elements test to determine if a felony is inherently dangerous. Based strictly on the statutory definition provided in the facts, does the predicate qualify?

a. It qualifies as a predicate, because Trey actually drove 80 mph through a residential area, which is highly dangerous to human life.

b. It qualifies as a predicate, because vehicular flight from the police inherently carries a high probability of a fatal crash in all cases.

c. It does not qualify as a predicate, because the evasion statute can theoretically be violated safely by fleeing at very low speeds.

d. It does not qualify as a predicate, because the crime of evasion merges with the homicide under the independent-purpose doctrine limit.

e. It does not qualify as a predicate, because the prosecution cannot prove Trey possessed the specific intent to kill the pedestrian.

Answer: (c)

Explanation: Under California's abstract-elements test, a court looks strictly at the elements of the statute, not the defendant's actual conduct. If the felony can theoretically be committed

in a way that does not endanger human life (e.g., fleeing a police vehicle slowly in an empty field), it is not "inherently dangerous" and cannot serve as a predicate. Option (a) incorrectly applies the "facts-as-committed" test used in other jurisdictions. Option (b) makes an inaccurate categorical claim that ignores the requirement that the crime be dangerous in the abstract in all possible applications. Option (d) is wrong because evasion has an independent felonious purpose (escape) and thus does not merge. Option (e) is wrong because felony murder substitutes the felony's mens rea for the homicide's mens rea.

Q48. Assume Deacon is charged with felony murder for Omar's death under an accomplice theory. The jurisdiction strictly follows the *Tison* standard for accomplice felony murder (as adapted for state non-capital cases like California's SB 1437). Is Deacon guilty of Omar's murder?

a. Guilty, because Omar's death was a reasonably foreseeable consequence of the planned storage unit burglary and vehicular escape.

b. Guilty, because providing the crowbar for the planned burglary makes him a principal in the underlying predicate felony offense.

c. Not guilty, because he was absent from the scene and his peripheral involvement lacked a reckless indifference to human life.

d. Not guilty, because the agency theory of felony murder completely shields any accomplices who are not physically present at the scene.

e. Not guilty, because the *Tison* standard requires the defendant to personally inflict the fatal injury to support a murder conviction.

Answer: (c)

Explanation: Under the *Tison* standard (and reforms like California's SB 1437), an accomplice who is not the actual killer must be a "major participant" in the underlying felony and act with "reckless indifference to human life." Deacon provided a crowbar but no weapons and stayed home (Fact 7); under cases like *Brown* and *Emanuel*, this peripheral involvement without lethal weapons falls short of the reckless indifference and major participant requirements. Option (a) ignores the specific *Tison* limitations that now restrict liability for mere principals. Option (b) states the standard proximate-cause test, not the *Tison* test. Option (d) misstates agency theory, which applies when a non-felon (like a police officer) kills, not when a co-felon kills. Option (e) incorrectly claims *Tison* abolishes accomplice liability entirely, which it does not.

Q49. Assume Trey is charged with misdemeanor manslaughter based specifically on driving with a suspended license when he struck Omar. The jurisdiction applies the proximate-cause limitation. Is Trey guilty under this specific theory?

a. Guilty, because the lack of a valid driver's license constructively supplies the necessary malice to establish criminal homicide.

b. Guilty, because striking Omar occurred continuously during the exact same timeframe that Trey was unlawfully driving without his license.

c. Not guilty, because driving with a suspended license is merely a malum prohibitum regulatory offense rather than a malum in se crime.

d. Not guilty, because the specific unlawful aspect of lacking a valid license did not causally produce the fatal vehicular collision.

e. Not guilty, because the Model Penal Code rejects the misdemeanor manslaughter doctrine entirely in favor of proving actual recklessness.

Answer: (d)

Explanation: The proximate-cause limitation to misdemeanor manslaughter requires that the specific *unlawful aspect* of the conduct be causally connected to the death. Lacking a valid piece of plastic (the license suspension) does not inherently cause a crash; the dangerous manner of driving (80 mph) causes the crash, but the predicate asked about was strictly the suspended license. Option (a) incorrectly states the strict liability structure without applying the proximate-cause limitation requested by the stem. Option (b) applies a mere "but for" or temporal coincidence test, which the proximate-cause limitation explicitly rejects. Option (c) relies on the malum in se limitation, which is a different doctrine than proximate cause. Option (e) correctly states the MPC rule, but the stem specifies a jurisdiction utilizing the traditional rule's proximate-cause limit.

Stem 2: Inchoate & Conspiracy Charges

"Now that we've mapped the homicides, we need to secure the underlying drug, conspiracy, and attempt charges. We have financial evidence linking Sloane to the operation, and drug evidence from Trey's arrest. Analyze the conspiracy and accomplice liability for Sloane, attempt liability for Trey, and whether we can charge the whole network under RICO."

Q50. Assume Sloane is charged with conspiracy to distribute fentanyl. She claims she was merely a chemist providing a neutral service, not a conspirator. Under the *Lauria* standard for inferring purpose, does her compensation structure establish the requisite intent?

a. Yes, because taking a 20% cut of the profits inherently demonstrates a direct financial stake in the illicit venture's ongoing success.

b. No, because receiving a percentage of overall profits is legally indistinguishable from charging a flat, standardized fee for her labor.

c. No, because she merely worked in the laboratory and did not directly sell the packaged fentanyl to Chloe or any other street buyers.

d. Yes, because any individual who supplies materials for illegal goods is held strictly liable for the network's subsequent distribution.

e. No, because chemical formulation is considered a legally neutral service that cannot support an inference of specific criminal purpose.

Answer: (a)

Explanation: In *People v. Lauria*, the court held that a provider of goods or services can be inferred to have the required purpose to participate in a conspiracy if they have a "stake in the venture." Receiving a percentage of profits (Fact 11) is the classic example of a stake in the venture, as the provider's financial reward is tied directly to the success of the illegal enterprise. Option (b) is incorrect because conspiracy requires specific intent (purpose), not strict liability. Option (c) is incorrect because conspiracy liability does not require the defendant to personally execute the target offense. Option (d) is factually and legally incorrect; *Lauria* explicitly distinguishes between flat fees and percentage cuts. Option (e) is incorrect because *Lauria* permits the inference of purpose even for neutral services if the "stake in the venture" test is met.

Q51. Assume the jurisdiction has explicitly rejected the *Pinkerton* doctrine and relies exclusively on traditional accomplice liability. Is Sloane guilty as an accomplice to manslaughter for Chloe's death?

a. Guilty, because any foreseeable crime committed by a fellow network member automatically establishes standard accomplice liability.

b. Guilty, because she intentionally aided the drug distribution while possessing the required recklessness regarding the fatal overdose risk.

c. Not guilty, because the prosecution must prove she acted with the specific intent to cause Chloe's death to secure an accomplice conviction.

d. Not guilty, because without the *Pinkerton* doctrine, a defendant is categorically immune from crimes committed by other network members.

e. Not guilty, because the jurisdiction requires that an accomplice be physically present at the scene when the target offense is completed.

Answer: (b)

Explanation: Traditional accomplice liability requires the defendant to possess the mens rea for the underlying conduct (purpose to aid the distribution) and the mens rea for the resulting crime (recklessness as to the manslaughter). Sloane possessed both when she intentionally formulated and packaged the drugs while subjectively aware of the severe overdose risk (Fact 5). Option (b) incorrectly conflates standard accomplice liability with the *Pinkerton* foreseeability rule. Option (c) is false because standard accomplice liability remains a fully viable path for holding defendants liable for others' acts. Option (d) is incorrect because one can be an accomplice to unintentional homicide by possessing the requisite recklessness; specific intent to kill is not required. Option (e) is false; physical presence is not an element of accomplice liability.

Q52. Assume the jurisdiction robustly applies the *Pinkerton* doctrine. The prosecution charges Sloane with the murder of Vance. Is she liable under the doctrine?

a. Not guilty, because Sloane's strictly defined role as a chemist legally insulates her from violent crimes committed by the organization.

b. Not guilty, because the spontaneous poisoning over a personal insult was fundamentally outside the scope of the distribution conspiracy.

c. Guilty, because the *Pinkerton* doctrine imposes absolute strict liability for any criminal offense committed by a fellow co-conspirator.

d. Not guilty, because the jurisdiction's application of the *Pinkerton* doctrine requires Sloane to have been physically present at the diner.

e. Guilty, because killing a business rival automatically advances any drug distribution conspiracy as an absolute matter of law.

Answer: (b)

Explanation: The *Pinkerton* doctrine holds co-conspirators liable for substantive offenses committed by partners only if those offenses are both reasonably foreseeable AND committed in furtherance of (within the scope of) the conspiracy. Deacon's poisoning of Vance was an

immediate, spontaneous reaction to being spat on in a diner (Facts 2 and 3). Such a spontaneous personal retaliation is outside the scope of the agreement to distribute fentanyl. Option (a) treats scope as an irrebuttable legal absolute, which is false; the facts matter. Option (b) ignores the scope and foreseeability limits entirely. Option (d) erroneously adds a physical presence requirement to *Pinkerton*. Option (e) is incorrect because a defendant's specific role does not shield them if the act is otherwise within the conspiracy's scope.

Q53. Assume Trey is charged with possession of the 50 baggies of fentanyl found in the van's center console. Assume the jury believes Trey's statement that he only drove the van and was genuinely unaware the baggies were inside. Is he guilty of constructive possession?

a. Not guilty, because constructive possession requires the prosecution to prove both the power to control the item and awareness of its presence.

b. Guilty, because his physical operation of the van creates an absolute legal presumption of possession regarding the console's contents.

c. Not guilty, because the drugs were located in the vehicle's center console rather than physically secured inside the defendant's own pockets.

d. Guilty, because driving the van toward the storage unit constitutes a substantial step toward the intended distribution of the fentanyl.

e. Not guilty, because a defendant can only legally possess narcotic substances if they personally purchased them using their own financial funds.

Answer: (a)

Explanation: Constructive possession requires proof that the defendant had both the power/intent to control the contraband AND awareness of its presence. If Trey genuinely did not know the drugs were in the console (Fact 10), he lacked the requisite awareness, defeating the charge. Option (a) is incorrect because there is no irrebuttable absolute presumption; the prosecution must prove awareness. Option (b) analyzes attempt liability (substantial step), not the elements of possession. Option (d) incorrectly implies that actual physical possession is required, whereas constructive possession specifically exists to cover items in one's domain of control (like a console). Option (e) incorrectly ties possession to ownership or financial purchase, which is not required.

Q54. Assume Trey is charged with attempted burglary of Vance's storage unit. He walked toward the fence in a ski mask with a crowbar but was stopped by security before reaching it. How would his liability differ between a traditional common law jurisdiction and a Model Penal Code jurisdiction?

a. Not guilty under common law proximity tests, but guilty under the MPC because walking toward the fence in a mask was a substantial step.

b. Not guilty under both frameworks, because he was apprehended before he could successfully pry open the door of the commercial storage unit.

c. Not guilty under common law proximity tests, but guilty under the MPC because the MPC is designed to punish mere preparatory thoughts.

d. Guilty under both frameworks, because wearing a ski mask decisively proves his specific intent to commit the underlying burglary offense.

e. Guilty under common law proximity tests, but not guilty under the MPC because he lacked a substantial step toward the crime's commission.

Answer: (a)

Explanation: The common law requires the defendant to be dangerously close to completing the crime (the proximity tests). Trey was parked down the block and hadn't even reached the outer perimeter fence, which likely fails the strict physical proximity requirements. The MPC, however, shifts the focus from what remains to be done to what has already been done, requiring only a "substantial step" that strongly corroborates criminal purpose. Approaching a target with a mask and crowbar easily satisfies the MPC. Option (a) analyzes mens rea but ignores the actus reus requirement. Option (b) ignores attempt liability entirely by demanding actual completion. Option (c) reverses the outcomes of the two standards. Option (e) misstates the MPC rule, which still requires an act (a substantial step) and explicitly does not punish mere preparation.

Q55. Assume federal prosecutors charge Deacon's network under RICO. They must prove the network constitutes an "enterprise" under the *Boyle* requirements. Does the network qualify?

a. It does not qualify as an enterprise, because the network's exclusive organizational purpose was illegal drug distribution rather than lawful acts.

b. It qualifies as an enterprise, because any group of two or more individuals committing a single isolated crime satisfies the structural element.

c. It qualifies as an enterprise, because the network had a defined operational hierarchy, distinct individual roles, and continuous operations.

d. It does not qualify as an enterprise, because establishing liability requires a rimmed wheel structure where every member knows the others.

e. It does not qualify as an enterprise, because federal law requires a legally incorporated business entity or legitimate commercial front.

Answer: (c)

Explanation: In *Boyle v. United States*, the Supreme Court held that an association-in-fact enterprise must have a structure with at least three features: a purpose, relationships among those associated with the enterprise, and longevity sufficient to permit these associates to pursue the enterprise's purpose. Deacon's network (Fact 1), with its defined hierarchy, distinct roles, and two years of operations, easily meets these structural requirements. Option (b) is incorrect because *Boyle* explicitly requires structure and continuity beyond a single isolated crime. Options (c) and (d) are incorrect because *United States v. Turkette* established that wholly illegitimate criminal organizations can be RICO enterprises. Option (e) conflates the structural requirements of a RICO enterprise with the specific "rimmed wheel" analysis of traditional conspiracy doctrine.

Scenario 5: Mock The Cornered Defenses

Facts

1. Leo, Artie, Silas, and Dante met in a diner. They pooled $40,000 to rent an industrial warehouse, purchase chemical reactors, and acquire firearms, explicitly agreeing to manufacture Schedule II synthetic opioids.

2. Dante maintained exclusive possession of the only key to the warehouse's reinforced steel safe, where he stored the finished product each night.

3. During an active chemical synthesis, the primary reactor malfunctioned and its temperature gauge redlined. Artie, the chemist, calculated that the volatile mixture would detonate within twelve minutes, yielding a blast radius that would level the warehouse and an adjacent occupied residential block.

4. Leo, his face flushed and jaw clenched as the redlining gauge threatened his entire product line, drew a 9mm pistol and pressed the barrel to Artie's temple. 'Steal the nitrogen tanker from the lot next door and flood our reactor, or I will put a bullet in your brain right now,' Leo stated.

5. Benny, a local mechanic hired to fix the lab's generator, witnessed the threat. Sweating profusely, he tossed Artie his master set of hotwiring tools and yelled, 'I don't care about your lab, I just want to survive!'

6. Meanwhile, outside the active lab, Vargas, a rival dealer, approached the loading dock heavily armed to hijack the drug shipment. Silas, the operation's perimeter guard who had a documented medical history of severe schizophrenia, stopped pacing. His eyes widened and he began muttering to himself as Vargas approached.

7. Silas dropped to his knees, pointed his rifle at Vargas, and screamed, 'Go back to hell, fire-demon!' Silas fired three shots, killing Vargas. Upon arrest, Silas told police he was proud to have slain a monster made of smoke to protect the castle.

8. Inside, Artie successfully flooded the reactor with the nitrogen, preventing the explosion. Silas's gunshots drew passing police, who raided the warehouse, seized the drugs from the safe, and arrested Artie, Benny, Silas, and Leo. Dante was not present at the warehouse.

9. Later that evening, Hector, an enforcer for Vargas's gang, kicked open Dante's apartment door. Hector sat heavily on Dante's living room couch and placed a revolver on his lap. 'My crew is five minutes away. When they get here, we are executing you for what happened to Vargas,' Hector said, leaning back and resting his hands behind his head.

10. Dante visually confirmed the apartment's rear fire-escape window was unlocked and unobstructed, providing a safe and immediate avenue of retreat.

11. Dante panicked, certain that Hector was drawing the weapon to kill him right then.

Q56. Which affirmative defense or defenses may Artie validly raise for the theft of the nitrogen tanker?

a. Necessity only, because duress is categorically unavailable as an excuse for any crime involving the theft of hazardous materials.

b. Neither, because he had a reasonable legal alternative to contact law enforcement rather than intentionally stealing the commercial nitrogen.

c. Neither, because his initial voluntary participation in the illegal drug operation automatically forecloses both affirmative defenses regardless of threat.

d. Both necessity, because the theft avoided a greater catastrophic harm, and duress, because he faced an imminent threat of death.

e. Duress only, because the coercion came from a human actor rather than natural circumstances, precluding the necessity defense entirely.

Answer: (d)

Explanation: Option (a) is correct because Artie's actions satisfy the elements of both defenses: he stole the tanker to prevent a catastrophic neighborhood explosion (necessity/lesser evils) and did so under an immediate, deadly threat from Leo (duress). Option (b) fails because modern necessity doctrine generally permits the defense even when the threat originates from a human actor. Option (c) is incorrect because there is no categorical limit barring duress for theft offenses; the bar traditionally applies only to intentional homicide. Option (d) fails because waiting for police during a twelve-minute countdown with a gun to his head was not a genuine, reasonable alternative. Option (e) fails because under the MPC fault-calibration rule, prior fault only bars the defense if the fault level matches the mens rea of the charged crime, and Artie did not purposely or recklessly cause the reactor's mechanical malfunction.

Q57. Under the traditional common law standard for derivative liability, is Benny guilty as an accomplice to Artie's theft of the tanker?

a. Guilty, because providing specialized hotwiring tools to commit a crime automatically satisfies the strict mental state for derivative accomplice liability.

b. Not guilty, because Benny acted with mere knowledge that the theft would occur, lacking the purpose to facilitate the underlying offense.

c. Guilty, because Benny knew the tools would be used to commit a crime, which is sufficient for liability under the traditional rule.

d. Not guilty, because Benny did not physically participate in the actual taking and driving of the nitrogen tanker from the lot.

e. Guilty, because Benny was present at the scene and his failure to intervene constituted an omission that aided the criminal act.

Answer: (b)

Explanation: Option (a) is correct because traditional accomplice liability requires the dual mens rea of intent to assist and purpose that the underlying crime succeed. Benny explicitly disclaimed any interest in the lab's success ("I don't care about your lab") and acted solely out of a desire to survive, showing knowledge but lacking the requisite purpose. Option (b) fails because physical participation in the core actus reus is not required; tossing the tools is sufficient physical aid. Option (c) fails because merely providing specialized tools does not

automatically prove purpose; the mental state must still be established. Option (d) fails because Benny did not commit an omission—he affirmatively provided tools. Option (e) fails because the traditional rule explicitly requires purpose, not mere knowledge, to establish accomplice liability.

Q58. Assume that, regardless of your answer to the previous question, Benny acted with the required purpose to aid Artie. How does the classification of Artie's affirmative defense legally impact Benny's derivative liability?

a. Benny's liability is evaluated independently, meaning Artie's successful assertion of any affirmative defense has absolutely no legal bearing on Benny's criminal guilt.

b. If Artie succeeds on either necessity or duress, Benny is completely shielded because both doctrines operate to fully negate the underlying actus reus.

c. If Artie succeeds on a duress defense, Benny is shielded from liability because the duress excuse automatically transfers to any accomplice at the scene.

d. If Artie succeeds on a necessity defense, Benny is shielded from liability, but if Artie succeeds only on a duress defense, Benny remains fully liable.

e. Benny remains fully liable in all circumstances because derivative accomplice liability irrevocably attaches the moment the principal commits the prohibited physical act.

Answer: (d)

Explanation: Option (a) is correct due to the fundamental distinction between justifications and excuses. Necessity is a justification, meaning the act is deemed legally right, shielding any accomplice who assists. Duress is an excuse, meaning the act is wrongful but the actor is not blamed; excuses are personal and do not transfer to uncoerced accomplices like Benny. Option (b) fails because neither defense negates the actus reus, and duress does not shield an accomplice. Option (c) fails because excuses like duress are strictly personal to the coerced actor. Option (d) fails because derivative liability structurally ties the accomplice's guilt to the wrongfulness of the principal's act; a justified act cannot support accomplice liability. Option (e) fails because it ignores the entire doctrine of justification, which legally nullifies the wrongfulness of the principal's physical act.

Q59. Under the M'Naghten and Model Penal Code (MPC) insanity tests, is Silas legally entitled to an acquittal for the shooting of Vargas?

a. Acquitted under both tests, because his delusion prevented him from understanding the nature of his act and appreciating its moral wrongfulness.

b. Convicted under both tests, because his statement about protecting the castle proves he understood the mechanical nature of firing a lethal weapon.

c. Acquitted under M'Naghten only, because the MPC test strictly requires proof of an irresistible impulse, which is absent from Silas's deliberate shooting.

d. Acquitted under the MPC only, because the M'Naghten rule requires a total inability to control one's actions, which Silas clearly maintained.

e. Convicted under both tests, because his voluntary participation in a criminal conspiracy legally precludes the use of the insanity defense for foreseeable crimes.

Answer: (a)

Explanation: Option (a) is correct because Silas believed he was shooting a "monster made of smoke" and a "fire-demon." Under M'Naghten, this cognitive deficit means he did not know the nature and quality of his act (killing a human) nor that it was wrong. The MPC encompasses this severe cognitive impairment by asking if he lacked substantial capacity to appreciate the criminality/wrongfulness of his conduct. Option (b) fails because the MPC includes a cognitive prong (appreciate criminality/wrongfulness) in addition to its volitional prong; it does not strictly require an irresistible impulse. Option (c) fails because M'Naghten is entirely a cognitive test (knowing right from wrong) and does not require volitional inability to control actions. Option (d) fails because there is no blanket rule barring the insanity defense for crimes committed during a conspiracy. Option (e) fails because understanding the mechanics of a firearm does not equate to understanding the nature and quality of the act (killing a human being).

Q60. Assume that Silas is prosecuted in a jurisdiction that has abolished the affirmative defense of insanity (the mens rea model). Is Silas guilty of the specific intent crime of intentional murder for killing Vargas?

a. Guilty, because his deliberate aiming and firing of the weapon demonstrates sufficient voluntary action to satisfy all necessary elements of the charged crime.

b. Guilty, because the abolition of the insanity defense strictly prohibits any consideration of psychiatric evidence by the jury during a criminal trial.

c. Not guilty, because his delusion that he was shooting a fire-demon prevented him from forming the specific intent to kill a human being.

d. Not guilty, because the federal constitution requires all jurisdictions to acquit defendants who cannot appreciate the moral wrongfulness of their criminal conduct.

e. Guilty, because he intended to destroy the entity before him, which automatically transfers to the human victim under the doctrine of transferred intent.

Answer: (c)

Explanation: Option (a) is correct because in states that have abolished the insanity defense (e.g., Kansas, Idaho), psychiatric evidence remains admissible if it directly negates the specific statutory mens rea. Because Silas genuinely believed he was shooting a smoke monster, he lacked the specific intent to kill a human being, requiring acquittal of intentional murder. Option (b) fails because the Supreme Court ruled in Kahler v. Kansas that the Constitution does not require a moral capacity insanity test. Option (c) fails because abolition jurisdictions still allow psychiatric evidence to negate mens rea elements. Option (d) fails because voluntary action (actus reus) is separate from specific intent (mens rea), and the crime requires both. Option (e) fails because transferred intent applies when a defendant intends to kill one human and hits another; it cannot manufacture the initial mens rea to kill a human from the intent to destroy a hallucinated monster.

Q61. Is Dante legally liable for the murder of Vargas under the Pinkerton doctrine?

a. Not liable, because Pinkerton liability only applies to the specific target offense initially agreed upon, which was drug manufacturing rather than intentional homicide.

b. Liable, because Silas's act of shooting a rival to protect the drug shipment was a foreseeable consequence in furtherance of the ongoing conspiracy.

c. Not liable, because Silas's act was the result of a psychotic delusion rather than a rationally planned act designed to further the conspiracy.

d. Liable, because the Pinkerton doctrine holds all conspirators strictly liable for any crime committed by a co-conspirator, regardless of its factual foreseeability.

e. Not liable, because Dante was not physically present at the warehouse when the shooting occurred, which severs the necessary chain of proximate causation.

Answer: (b)

Explanation: Option (a) is correct because under Pinkerton, a co-conspirator is liable for the substantive offenses committed by other conspirators if those offenses are both in furtherance of the conspiracy and reasonably foreseeable. Silas, acting as the perimeter guard for a major

armed drug operation, shot a rival trying to hijack the shipment—an act squarely in furtherance of the conspiracy and highly foreseeable in the drug trade. Option (b) fails because Pinkerton is not strict liability; it explicitly requires the collateral crime to be reasonably foreseeable. Option (c) fails because Pinkerton liability routinely applies to absent co-conspirators. Option (d) fails because even though Silas was delusional, he fired the weapon explicitly to "protect the castle," fulfilling his conspiratorial role in furtherance of the enterprise. Option (e) fails because Pinkerton specifically exists to capture collateral offenses that fall outside the initial target agreement.

Q62. Is Dante guilty of felony murder for the death of Vargas?

a. Not guilty, because Dante completely lacked the specific intent to kill Vargas, which is a mandatory prerequisite for any valid murder conviction.

b. Guilty, because the homicide occurred during the perpetration of an inherently dangerous drug manufacturing felony in which Dante was a willing participant.

c. Not guilty, because Silas's severe mental illness acts as an independent intervening cause that legally breaks the necessary chain of proximate causation.

d. Not guilty, because the modern agency approach to felony murder categorically bars derivative liability whenever the fatal blow is struck by a co-felon.

e. Guilty, because the modern felony murder rule operates as a strict liability offense that explicitly ignores whether the underlying crime was inherently dangerous.

Answer: (b)

Explanation: Option (a) is correct because felony murder applies when a death occurs during the perpetration of an inherently dangerous felony (such as armed drug manufacturing/trafficking). As a co-felon in that operation, Dante is liable for the resulting death caused by his co-felon Silas, regardless of his absence. Option (b) fails because most jurisdictions still require the underlying predicate felony to be inherently dangerous or statutorily enumerated. Option (c) fails because the core function of the felony murder rule is to substitute the intent to commit the felony for the intent to kill (malice). Option (d) fails because a co-felon performing his assigned role (guarding the drugs) is a dependent, foreseeable act, not an independent intervening cause that breaks proximate causation. Option (e) fails because the agency approach bars liability when the fatal blow is struck by a non-felon (like police or a victim), but explicitly allows liability when the blow is struck by a co-felon.

Q63. Have Leo, Artie, Silas, and Dante legally satisfied the prima facie elements of criminal conspiracy?

a. Yes, because they formed a mutual agreement to commit a crime and the pooling of money and warehouse rental constituted overt acts in furtherance.

b. No, because Silas's severe schizophrenia rendered him legally incapable of forming the specific intent to agree, voiding the bilateral agreement for all parties.

c. No, because the criminal operation had not yet produced any finished synthetic opioids, meaning the agreement remained exclusively in the unpunishable preparatory stage.

d. Yes, because the agreement to manufacture Schedule II narcotics is a strict liability conspiracy that does not require any overt act to be prosecutable.

e. No, because the active presence of an undercover agent is strictly required to establish a legally valid conspiracy prosecution under the traditional Wharton Rule.

Answer: (a)

Explanation: Option (a) is correct because a conspiracy requires an agreement to commit a crime and, in most modern jurisdictions, an overt act in furtherance of that agreement. The explicit meeting and agreement, combined with pooling money, renting the warehouse, and buying equipment, easily satisfy these elements. Option (b) fails because modern conspiracy statutes almost universally require an overt act for standard non-drug conspiracies, and often for drug conspiracies as well, rather than being "strict liability." Option (c) fails because conspiracy punishes the agreement and initial steps; success or completion of the target offense is completely unnecessary. Option (d) fails because even if Silas lacked capacity, modern jurisdictions follow the MPC's unilateral approach, and even under bilateral rules, the remaining three members validly formed an agreement. Option (e) fails because Wharton's Rule applies to crimes that logically require two people to commit (like dueling or adultery), not to the requirement of an undercover agent.

Q64. Based on the police seizure at the warehouse, is Dante legally guilty of constructively possessing the finished drugs stored inside the reinforced steel safe?

a. Guilty, because his initial financial contribution to the drug manufacturing operation automatically establishes actual physical possession of all resulting contraband.

b. Not guilty, because the police interrupted the manufacturing operation before Dante could physically distribute the finished product to any downstream buyers.

c. Not guilty, because the drugs were stored in a collective facility, legally preventing any single absent individual from establishing constructive possession.

d. Not guilty, because Dante was not physically present at the industrial warehouse at the precise moment the police seized the contraband from the safe.

e. Guilty, because his exclusive retention of the only key to the safe demonstrates the requisite power and intent to exercise dominion and control over the drugs.

Answer: (e)

Explanation: Option (a) is correct because constructive possession requires the power and intent to exercise dominion and control over an item. Dante's possession of the sole key to the safe establishes his exclusive power and control over the drugs inside, satisfying the doctrine. Option (b) fails because financial contribution to an operation does not establish "actual" physical possession, which requires immediate physical custody of the item. Option (c) fails because constructive possession was developed specifically to capture defendants who maintain control over contraband without being physically present. Option (d) fails because while a collective facility can complicate possession, Dante's exclusive control of the locked safe overcomes any ambiguity regarding collective access. Option (e) fails because the crime of possession is complete the moment control is established; intent or opportunity to distribute the drugs is legally irrelevant to a simple possession charge.

Q65. Assume Dante raises a standard self-defense claim for shooting Hector. Under traditional doctrine, does the imminence requirement permit Dante's preemptive use of deadly force?

a. No, because Hector's stated threat was conditioned on the future arrival of his crew, and his relaxed posture did not present an objectively immediate threat.

b. Yes, because the continuous threat doctrine allows a defendant to strike preemptively whenever a rival gang member unlawfully enters their private residence.

c. Yes, because Hector's known status as a violent gang enforcer automatically converts any verbal threat he makes into an imminent threat of deadly force.

d. Yes, because Dante subjectively believed that Hector was drawing a weapon, which completely satisfies the imminence requirement regardless of the objective facts.

e. No, because the defensive use of deadly force is categorically prohibited unless the aggressor has already inflicted a severe physical injury on the defendant.

Answer: (a)

Explanation: Option (a) is correct because traditional self-defense requires an objectively reasonable belief of an imminent threat of harm. Hector explicitly stated the execution would happen when his crew arrived in five minutes, and he sat with his hands behind his head. Objectively, the threat was future, not immediate. Option (b) fails because self-defense does not require the defendant to wait until they are physically struck or injured before acting. Option (c) fails because a purely subjective belief is insufficient; traditional self-defense requires the fear to be objectively reasonable under the circumstances. Option (d) fails because an aggressor's status or reputation, while relevant to reasonableness, does not automatically bypass the temporal requirement of an imminent physical threat. Option (e) fails because there is no "continuous threat" doctrine granting blanket preemptive rights against gang members in one's home.

Q66. Assuming Dante lived in a jurisdiction that strictly enforces a general duty to retreat before using deadly force, how does the location of the confrontation legally affect this duty?

a. Dante had a duty to retreat, because his active participation in a criminal enterprise automatically strips him of all self-defense rights inside his dwelling.

b. Dante had a duty to retreat, because the fire-escape window provided a visually confirmed and unobstructed avenue to secure complete personal safety.

c. Dante had a duty to retreat, because the Castle Doctrine is strictly invalidated when the intruder is seated and unarmed at the exact moment of the shooting.

d. Dante had no duty to retreat, because the duty to retreat applies only to non-deadly force and is legally irrelevant when a firearm is introduced.

e. Dante had no duty to retreat, because the Castle Doctrine universally exempts individuals from the duty to retreat when attacked inside their own home.

Answer: (e)

Explanation: Option (a) is correct because the Castle Doctrine is a universally recognized exception to the duty to retreat. Even in strict retreat jurisdictions, a person is not required to flee from an intruder inside their own home before resorting to self-defense. Option (b) fails because the existence of a safe avenue of retreat (the fire escape) is exactly what the Castle Doctrine overrides when the defendant is home. Option (c) fails because the duty to retreat applies specifically to the use of deadly force; there is generally no duty to retreat before using non-deadly force. Option (d) fails because the Castle Doctrine's application depends on the location (the home) and the presence of a threat, not on the specific posture of the intruder.

Option (e) fails because while some statutory Stand Your Ground laws contain criminal activity exceptions, traditional Castle Doctrine inside the home does not automatically vanish simply because the resident is a criminal.

Q67. Assume that Dante is prosecuted in a jurisdiction that fully recognizes the doctrine of imperfect self-defense. How would Dante's subjective panic affect his criminal liability for shooting Hector?

a. It would have no effect on his liability because imperfect self-defense only applies when the defendant was the initial aggressor who later attempted to withdraw.

b. It would elevate the burden of proof, requiring the prosecution to prove beyond a reasonable doubt that Dante's subjective fear was completely fabricated.

c. It would mitigate a murder charge to voluntary manslaughter because his genuine, albeit unreasonable, fear of death negates the malice aforethought required for murder.

d. It would mitigate the charge to involuntary manslaughter because his failure to accurately assess the threat constituted gross criminal negligence.

e. It would result in a complete acquittal because the doctrine fully excuses defendants who act out of genuine panic, provided they are in their own home.

Answer: (c)

Explanation: Option (a) is correct because imperfect self-defense applies when a defendant honestly but unreasonably believes deadly force is necessary. This genuine belief negates the malice aforethought required for murder, reducing the offense to voluntary manslaughter. Option (b) fails because imperfect self-defense is a partial defense that mitigates the charge; it does not yield a complete acquittal. Option (c) fails because imperfect self-defense mitigates intentional killings to voluntary manslaughter, not to the unintentional crime of involuntary manslaughter. Option (d) fails because it confuses imperfect self-defense with the initial aggressor revival rule; imperfect self-defense applies based on the defendant's flawed subjective perception, not their status as an initial aggressor. Option (e) fails because raising the defense does not require the prosecution to prove the fear was fabricated; it merely shifts the jury's analysis to evaluating whether the genuine belief mitigated malice.

Scenario 6: Mock Procedural Block

Facts

1. Police officers observe Silas driving with a cracked taillight. Internal police communications later reveal the officers stopped Silas purely on an unsupported hunch of drug activity, using the traffic violation solely as a pretext.

2. Instead of pulling over, Silas accelerates to 90 mph, weaving erratically through a crowded residential neighborhood. He loses control of his vehicle, jumps the curb, and strikes a pedestrian, causing immediate fatal injuries. Evading police at high speeds is specifically designated as a felony under state law.

3. Silas abandons his vehicle and flees on foot to a nearby suspected stash house. Pursuing officers breach the front door and find Silas in the living room. He had just poured gasoline over 50 kilograms of packaged cocaine and was holding a lighter in his trembling hand. Officers tackle him before he can ignite it. In Silas's pocket, they find the only key to the locked bedroom where the drugs were stored.

4. Silas had just poured gasoline over 50 kilograms of packaged cocaine in a desperate bid to destroy the evidence; he held a lighter in his hand and a single key to the locked room was found in his front pocket.

5. Silas paid Elena $500 for a simple three-mile ride to the warehouse, a payment well above the market rate; Elena knew the cargo consisted of illegal chemicals.

6. During jury selection, DA Miller uses her peremptory challenges to strike all five Black prospective jurors. When Thorne raises a challenge, Miller states for the record: 'These jurors reside in neighborhoods with high drug-crime rates, making them inherently biased against police testimony.'

7. During his closing argument, Thorne presents leaked statistical data proving that the DA's charging policies have a 95% disparate impact on minority defendants. He explicitly urges the jury to acquit Silas of all charges to send a democratic protest message against a racially biased system.

8. Defense attorney Thorne argues for race-conscious jury nullification based on Paul Butler's framework, despite the defendant being charged with a violent felony murder.

9. Subpoenaed digital logs reveal that during trial preparation, DA Miller discovered a wiretap recording indicating the cocaine actually belonged to a rival syndicate. To protect her conviction rate against Silas, Miller intentionally deleted the recording from the evidentiary database.

10. Encrypted texts reveal that prior to trial, Silas and Thorne formed an explicit agreement to use cartel funds to illegally obstruct the legal proceedings.

11. Surveillance footage confirms Thorne met with State Senator Marcus Vance. They explicitly agreed Vance would sponsor the 'Evidence Integrity Act' to retroactively exclude stash-house evidence. In exchange, Thorne delivered $20,000 in cash, which he characterized as a 'campaign contribution,' paid three days before the bill's introduction.

12. Realizing the legislation might stall, Thorne independently paid Judge Mercer $10,000 to suppress key evidence. Silas was generally aware Thorne was using 'aggressive tactics' but did not know Thorne planned to bribe the judge.

13. Financial forensic audits establish that Thorne's law firm has operated for a decade as an ongoing, structured organization. The firm's primary, coordinated purpose has been facilitating bribes, witness tampering, and money laundering for multiple cartel lieutenants.

14. Following massive media coverage of the corruption, the city council debates decriminalizing minor drug offenses. Transcripts of the debate show that highly numerate council members who previously opposed decriminalization used their advanced statistical skills to selectively reinterpret the crime data, concluding the exact opposite of what the statisticians' report explicitly stated.

Q68. Silas files a motion to suppress the evidence gathered after the traffic stop, arguing that the stop violated the Fourth Amendment because internal communications proved it was purely a pretext for a drug investigation. Is the stop constitutional under *Whren v. United States*?

a. Yes, because an officer's subjective motivation does not invalidate a stop so long as objective probable cause of a traffic violation exists.

b. No, because the officers failed to issue a traffic citation before escalating the encounter into a full narcotics investigation.

c. No, because the police communications proved their primary objective was investigating drugs rather than enforcing standard traffic safety regulations.

d. Yes, because a cracked taillight creates a reasonable suspicion that the vehicle might be transporting illegal narcotics across state lines.

e. No, because pretextual stops are only permissible if the alleged traffic violation constitutes a misdemeanor rather than a mere infraction.

Answer: (a)

Explanation: Under *Whren v. United States*, a traffic stop is constitutional under the Fourth Amendment as long as officers have objective probable cause to believe a traffic violation occurred (here, the cracked taillight). The officers' subjective motivation (an unsupported hunch about drugs) is irrelevant to the Fourth Amendment analysis. (b) is incorrect because a cracked taillight does not create reasonable suspicion of narcotics transport. (c) is incorrect because subjective intent is disregarded under *Whren*. (d) is incorrect because there is no misdemeanor limitation on pretextual stops. (e) is incorrect because the constitutionality of the initial stop does not depend on whether a citation is ultimately issued.

Q69. Assume the jurisdiction applies the Model Penal Code (MPC) "substantial step" test. Silas is charged with attempted tampering with physical evidence for pouring gasoline on the cocaine and holding a lighter. Is Silas guilty of attempt?

a. Guilty, because he completed the offense the moment he formed the specific intent to destroy the evidence in the stash house.

b. Not guilty, because the police intervened before he could ignite the lighter, meaning he did not complete the final proximate act.

c. Guilty, because his actions strongly corroborated his criminal purpose and went far beyond mere preparation to destroy the drugs.

d. Not guilty, because it was factually impossible for him to destroy the cocaine once the police had already breached the front door.

e. Not guilty, because his trembling hand indicates he had not yet formed a firm and irrevocable intent to commit the underlying offense.

Answer: (c)

Explanation: Under the MPC's substantial step test, an attempt occurs when a defendant acts with the requisite mens rea and takes a substantial step toward the commission of the crime that strongly corroborates their criminal purpose. Pouring gasoline and holding a lighter clearly satisfies this standard. (a) is wrong because attempt requires both mens rea and an actus reus beyond mere thought. (c) is wrong because the MPC specifically rejects the common-law "last proximate act" test. (d) is wrong because a trembling hand does not negate mens rea, and "firm and irrevocable intent" is not the legal test. (e) is wrong because police intervention makes the crime incomplete, but factual impossibility is generally not a defense under the MPC.

Q70. Silas is charged with possession of the packaged cocaine found in the locked bedroom. The prosecution relies on the doctrine of constructive possession. Is the evidence sufficient to establish constructive possession?

a. Yes, because carrying the only key to the locked bedroom demonstrates he had the power and intention to exercise control over the drugs.

b. No, because the state cannot prove he had exclusive ownership of the stash house rather than merely being a temporary trespasser.

c. No, because constructive possession requires the defendant to be physically present in the exact room where the contraband is located.

d. Yes, because fleeing into a secured house containing illegal drugs automatically establishes joint constructive possession with whoever actually owns the premises.

e. No, because pouring gasoline on drugs in the living room proves he intended to destroy them rather than possess them for distribution.

Answer: (a)

Explanation: Constructive possession exists when a person lacks physical custody of an item but has both the power and intention to exercise dominion and control over it. Holding the only key to the locked room where the drugs were stored demonstrates this power and intent. (a) is wrong because merely being in a house with drugs does not automatically establish constructive possession. (c) is wrong because physical presence in the specific room is not required for constructive possession. (d) is wrong because ownership of the premises is not required if the defendant controls the specific area. (e) is wrong because intent to destroy does not retroactively negate the control and dominion already exercised over the drugs.

Q71. Assume the jurisdiction applies the traditional *Lauria* standard for accomplice liability. Elena is charged as an accomplice to Silas's drug possession because she drove him to the warehouse. Is Elena guilty as an accomplice?

a. No, because she was not physically present at the warehouse when the police actually discovered the packaged cocaine in the locked bedroom.

b. Yes, because a service provider is strictly liable for any crimes committed by a passenger if the provider knows the cargo is illegal.

c. No, because her knowledge of the illegal chemicals only establishes recklessness rather than the specific intent required for the crime.

d. No, because providing basic transportation is an inherently neutral activity that cannot serve as the actus reus for criminal accomplice liability.

e. Yes, because charging an above-market rate for a simple ride allows a jury to infer she had the purpose to facilitate the illegal enterprise.

Answer: (e)

Explanation: Under *Lauria*, a supplier of goods or services who merely knows of the buyer's illegal use is generally not an accomplice, as they lack the purpose to facilitate the crime. However, a jury may infer purpose if the provider charges an inflated above-market rate, showing they possess a stake in the venture. (a) is wrong because service providers are not strictly liable; they generally need purpose, which requires more than mere knowledge. (c) is wrong because driving is not constitutionally protected from serving as an actus reus. (d) is wrong because the inflated price allows an inference of purpose, overcoming the mere knowledge barrier. (e) is wrong because physical presence at the scene of the crime is not required for accomplice liability.

Q72. Silas is charged with felony murder for the pedestrian's death. The jurisdiction's felony murder statute includes evading police at high speeds as an enumerated predicate felony. Is Silas guilty of felony murder?

a. Yes, because his intent to evade the police legally transfers to supply the specific intent required to kill the pedestrian.

b. No, because the felony of evading police merges with the homicide, precluding a separate conviction for felony murder.

c. No, because jumping the curb was a highly unusual independent intervening cause that legally severed the proximate causation chain.

d. Yes, because the pedestrian's death occurred directly during the perpetration of a statutorily enumerated inherently dangerous felony.

e. No, because the pedestrian's death was completely unintentional and therefore lacks the express malice aforethought typically required for a murder conviction.

Answer: (d)

Explanation: Felony murder imposes strict liability for deaths that occur during the commission or attempted commission of certain enumerated felonies. Since evading police at high speeds is an enumerated felony in this jurisdiction, the pedestrian's death during the flight satisfies the elements of felony murder. (b) is wrong because felony murder does not use transferred intent; it substitutes the intent to commit the felony for the intent to kill. (c) is wrong because felony murder explicitly dispenses with the requirement of proving malice aforethought regarding the death itself. (d) is wrong because evading police has an independent felonious purpose from the assaultive act that caused death, so the merger doctrine does not apply. (e) is wrong because losing control of a vehicle during a high-speed chase is a highly foreseeable consequence, not an independent intervening cause.

Q73. Assume the jurisdiction has abolished the felony murder rule. The prosecution instead charges Silas with depraved-heart (extreme reckless) murder for the pedestrian's death. Is Silas guilty of this charge?

a. No, because the pedestrian inherently assumed the risk of injury by standing near the roadway during an active high-speed police pursuit.

b. Yes, because driving 90 mph erratically through a crowded residential neighborhood demonstrates an extreme indifference to the value of human life.

c. No, because depraved-heart murder typically requires the use of a traditional deadly weapon, and an automobile cannot legally qualify as such.

d. No, because Silas subjectively desired to escape the police rather than cause physical harm, negating the required mental state of malice.

e. Yes, because any violation of a state traffic law that results in a death automatically satisfies the gross negligence standard for murder.

Answer: (b)

Explanation: Depraved-heart (or extreme reckless) murder requires conduct that demonstrates a conscious disregard of a substantial and unjustifiable risk to human life, manifesting an extreme indifference to the value of human life. Weaving at 90 mph through a crowded residential area clearly meets this standard. (b) is wrong because a mere traffic violation only supports ordinary or perhaps gross negligence, not the extreme recklessness required for murder. (c) is wrong because extreme recklessness requires a conscious disregard of the risk, not a subjective desire to cause the harm. (d) is wrong because victim assumption of risk is generally not a defense to criminal homicide. (e) is wrong because a vehicle used in a highly dangerous manner can easily satisfy the requirement for extreme indifference to life.

Q74. Before trial, defense attorney Thorne files a selective prosecution motion, presenting the leaked statistical data showing the DA's policies have a 95% disparate impact on minority defendants. Thorne requests discovery of the DA's internal charging files. Under *United States v. Armstrong*, how should the court rule?

a. Deny discovery, because selective prosecution claims can only be raised on direct appeal following a conviction, not during pretrial motions.

b. Grant discovery, because a 95% disparate impact creates a mandatory constitutional presumption of discriminatory intent that the government must definitively rebut.

c. Deny discovery, because prosecutors possess absolute and unreviewable immunity from any judicial inquiry into their highly discretionary administrative charging decisions.

d. Deny discovery, because Thorne must first produce credible evidence that similarly situated defendants of other races could have been prosecuted but were not.

e. Grant discovery, because robust statistical evidence of systemic racial disparity fully satisfies the threshold requirement for obtaining internal prosecutorial records.

Answer: (d)

Explanation: Under *United States v. Armstrong*, to obtain discovery for a selective prosecution claim, a defendant must produce "credible evidence" that similarly situated defendants of other races could have been prosecuted but were not. Statistical evidence of disparate impact alone is insufficient to meet this threshold. (a) and (b) are wrong because the Supreme Court explicitly rejected statistical evidence as sufficient to mandate discovery or prove intent in *McCleskey* and *Armstrong*. (d) is wrong because while prosecutors have broad discretion, they do not have absolute immunity from equal protection challenges if the *Armstrong* standard is met. (e) is wrong because selective prosecution is properly raised as a pretrial motion.

Q75. During jury selection, Thorne objects to DA Miller striking all five Black prospective jurors. Miller states: "These jurors reside in neighborhoods with high drug-crime rates, making them inherently biased against police testimony." Under the *Batson* framework, how should the trial court evaluate Miller's strike?

a. The court must uphold the strike because the defense fundamentally failed to prove a persistent pattern of discriminatory strikes across multiple unrelated trials.

b. The court must uphold the strike because residency in a high-crime neighborhood constitutes a per se valid, race-neutral justification under step two of *Batson*.

c. The court must invalidate the strike because striking jurors based on neighborhood demographics frequently operates as an impermissible and unconstitutional proxy for race.

d. The court must invalidate the strike because prosecutors are strictly prohibited from using peremptory challenges in any felony trial involving minority defendants.

e. The court must invalidate the strike because the prosecutor failed to provide documentary evidence proving the jurors actually distrusted the police.

Answer: (c)

Explanation: Under the *Batson* framework, a prosecutor cannot use peremptory strikes to exclude jurors on account of race. While a prosecutor must offer a "race-neutral" reason at step two, courts often find that striking jurors based on residency in high-crime neighborhoods serves as an impermissible proxy for race, demonstrating discriminatory intent at step three. (a) is wrong because while it may be facially neutral, courts scrutinize such proxy justifications at step three to determine if they mask intentional discrimination. (b) is wrong because *Batson* allows a defendant to prove discrimination based solely on the facts of their own case. (d) is wrong because prosecutors retain peremptory challenges; they simply cannot use them discriminatorily. (e) is wrong because step two requires only a facial explanation, not documentary proof, though the proxy nature is evaluated at step three.

Q76. In his closing argument, Thorne urges the jury to acquit Silas to send a democratic protest message against a racially biased system, relying on Paul Butler's framework for race-conscious nullification. According to Butler's framework, is Thorne's argument appropriate for Silas's case?

a. Yes, because Butler explicitly argues that Black jurors have an overriding moral duty to nullify any charges brought by a demonstrably racist prosecution system.

b. No, because jury nullification was historically utilized to protect white perpetrators of racial violence, rendering any modern progressive use of the practice inherently invalid.

c. Yes, because nullification is the most direct form of participatory democracy available to marginalized communities, regardless of the severity of the underlying charge.

d. No, because Butler's nullification proposal requires the defense to present concrete proof that the individual police officers involved were motivated by explicit racial animus.

e. No, because Butler's theoretical proposal strictly limits race-conscious jury nullification to nonviolent offenses, and Silas is currently charged with a violent felony murder.

Answer: (e)

Explanation: Professor Paul Butler's proposal for race-conscious jury nullification explicitly limits the practice to nonviolent offenses, particularly victimless drug crimes. He does not advocate nullification for violent crimes with victims, like felony murder, because the community has a legitimate interest in protection from violence. (a) and (b) are wrong because they ignore the violent/nonviolent distinction central to Butler's framework. (d) is wrong because Butler's argument relies on systemic exclusion and structural bias, not individualized proof of officer animus. (e) is wrong because while the historical dual legacy of nullification exists, Butler specifically argues for repurposing it as a modern democratic tool, making this an inaccurate statement of his framework.

Q77. Assume that following Thorne's closing argument, Judge Mercer instructs the jury: "If you acquit the defendant contrary to the evidence, you will have violated your legal oath, and you may face judicial sanctions for contempt of court." Under *United States v. Kleinman*, is this instruction permissible?

a. No, because criminal defendants possess a fundamental Sixth Amendment right to receive an affirmative jury instruction explaining their power to nullify.

b. No, because the instruction explicitly implies jurors could be punished for nullification, which crosses the legal line into impermissible and unconstitutional judicial coercion.

c. No, because the Double Jeopardy Clause strictly prohibits trial judges from instructing juries on the precise meaning and consequences of their oaths.

d. Yes, because trial courts have a mandatory constitutional duty to actively forestall jury nullification through strong, potentially coercive admonitions during the trial proceedings.

e. Yes, because juries only possess the factual power to nullify, not a legal right, meaning courts can freely threaten them to prevent its exercise.

Answer: (b)

Explanation: Under *United States v. Kleinman*, while courts may instruct juries that they must follow the law and may tell them there is no right to nullify, they cross the line into impermissible coercion if they state or imply that jurors could be punished or sanctioned for their verdict. The power to acquit is unreviewable. (a) and (b) are wrong because while courts can discourage nullification, threatening sanctions is strictly prohibited because it undermines

juror independence. (d) is wrong because defendants have no right to a pro-nullification instruction. (e) is wrong because judges routinely instruct juries on their oaths; the error is threatening punishment.

Q78. The Special Counsel considers filing a civil rights lawsuit for damages under § 1983 against DA Miller for intentionally deleting the exculpatory wiretap recording. Will absolute prosecutorial immunity shield Miller from civil liability for this act?

a. No, because the suppression of evidence violates a clearly established constitutional right, automatically stripping the prosecutor of any immunity.

b. Yes, because deleting evidence during trial preparation is a function intimately associated with the judicial phase of the criminal process.

c. No, because absolute immunity only applies to statements made in open court, not to investigative or preparatory evidentiary misconduct.

d. Yes, because prosecutors enjoy absolute immunity for any conduct that violates state professional ethics rules during an active prosecution.

e. No, because the intentional destruction of exculpatory evidence constitutes administrative malfeasance rather than a protected prosecutorial function.

Answer: (b)

Explanation: Under *Imbler v. Pachtman* and applied in cases like *Price v. Montgomery County*, prosecutors possess absolute immunity from civil liability under § 1983 for conduct "intimately associated with the judicial phase of the criminal process." This immunity protects the prosecutorial function, even when that function is carried out through ethically reprehensible acts like suppressing or destroying evidence during trial preparation. (b) is wrong because immunity does not exist *because* of an ethics violation; it exists despite it, protecting the function. (c) is wrong because preparing for trial by reviewing (and even deleting) evidence is treated as a prosecutorial, not administrative, function. (d) is wrong because absolute immunity covers trial preparation, not just in-court statements. (e) is wrong because absolute immunity, unlike qualified immunity, applies even when clearly established rights are maliciously violated.

Q79. Silas and Thorne are charged with conspiracy to obstruct justice based on their encrypted texts agreeing to use cartel funds. Is the explicit agreement sufficient to satisfy the core element of conspiracy?

a. Yes, because the explicit bilateral agreement to illegally obstruct the legal proceedings directly constitutes the required meeting of the minds for criminal conspiracy.

b. No, because a legally valid conspiracy charge requires the involvement of at least three participants when the target crime involves institutional corruption.

c. No, because the attorney-client privilege strictly and absolutely bars the state from charging a defense lawyer and their client with a joint criminal conspiracy.

d. No, because the conspiracy doctrine strictly requires the prosecution to prove that Thorne and Silas successfully completed the underlying obstruction of justice.

e. Yes, because an explicit verbal or written agreement to commit an unlawful act automatically satisfies the overt act requirement in all modern jurisdictions.

Answer: (a)

Explanation: The core element of conspiracy is an agreement between two or more persons to commit a criminal act. The explicit encrypted texts between Silas and Thorne to use cartel funds to obstruct proceedings demonstrate this bilateral agreement. (a) is wrong because while the agreement is the core element, many jurisdictions still require an independent "overt act" in furtherance of the conspiracy, which is distinct from the agreement itself. (c) is wrong because the attorney-client privilege does not protect communications made in furtherance of a crime or fraud. (d) is wrong because conspiracy is an inchoate offense that is complete upon agreement (and an overt act, if required), regardless of whether the target crime is successful. (e) is wrong because conspiracy only requires two participants.

Q80. Senator Vance is investigated under federal anti-corruption statutes for accepting the $20,000 cash payment. Vance claims the money was merely a campaign contribution given as a "gratuity" for his general support of criminal justice reform. Under the federal framework articulated in *Snyder v. United States*, does this transaction constitute a bribe rather than a gratuity?

a. No, because a gratuity is defined as any payment over $10,000, while bribes only apply to smaller, less visible financial transactions.

b. No, because federal corruption statutes solely regulate state and local executive officials, making state senators inherently immune from prosecution.

c. Yes, because any substantial cash payment to a public official automatically qualifies as a criminal bribe under federal anti-corruption law.

d. No, because the funds were explicitly labeled as a campaign contribution, which creates an irrebuttable statutory presumption of legality.

e. Yes, because the payment was made pursuant to an explicit agreement to influence a specific official act before that act occurred.

Answer: (e)

Explanation: Under *Snyder v. United States* and 18 U.S.C. § 666, a bribe is a payment made or agreed to *before* an official act with the intent to influence it (a quid pro quo), whereas a gratuity is a payment made *after* an act as appreciation. Because Vance and Thorne explicitly agreed to exchange the money for the sponsorship of a specific bill before the bill was introduced, it is a bribe. (a) is wrong because not all cash payments are bribes; they must involve a corrupt quid pro quo. (c) is wrong because § 666 explicitly covers state and local officials whose agencies receive federal funds. (d) is wrong because labeling a bribe as a "campaign contribution" does not legally immunize a corrupt quid pro quo. (e) is wrong because the distinction between bribe and gratuity is based on timing and intent, not the dollar amount.

Q81. The prosecution seeks to hold Silas liable for Thorne's bribery of Judge Mercer under the *Pinkerton* doctrine. Assuming the jurisdiction follows *Pinkerton*, is Silas guilty of the bribery offense?

a. Yes, because the bribery of the judge was a reasonably foreseeable consequence of the explicit conspiracy to illegally obstruct the proceedings.

b. No, because Silas was only generally aware of aggressive tactics and completely lacked the specific intent required to bribe a sitting judge.

c. No, because the formalized attorney-client relationship inherently severs the chain of proximate causation required to establish vicarious criminal liability for the client.

d. Yes, because Silas provided the initial cartel funding, making him strictly liable for any subsequent felony Thorne committed during the trial.

e. No, because the *Pinkerton* doctrine requires the defendant to be physically present when the co-conspirator commits the target substantive offense.

Answer: (a)

Explanation: Under the *Pinkerton* doctrine, a conspirator is vicariously liable for the substantive offenses committed by a co-conspirator if those offenses are committed in furtherance of the conspiracy and are reasonably foreseeable as a necessary or natural consequence of the unlawful agreement. Bribing the trial judge is a highly foreseeable consequence of a conspiracy explicitly formed to "illegally obstruct the legal proceedings" using cartel funds. (b) is wrong because *Pinkerton* is based on foreseeability and furtherance of the conspiracy, not strict liability for any unrelated felony. (c) is wrong because *Pinkerton* dispenses with the requirement that the defendant possess the specific intent for the collateral substantive crime, relying instead on foreseeability. (d) is wrong because physical presence is not required for *Pinkerton* liability. (e) is wrong because the attorney-client relationship does not shield clients from liability for crimes committed jointly with their attorneys.

Q82. The Special Counsel indicts Thorne's law firm under the Racketeer Influenced and Corrupt Organizations Act (RICO). Thorne argues his law firm is a legitimate business and cannot constitute a criminal "enterprise." Will Thorne's defense succeed?

a. No, because any business entity that generates more than $10,000 in illegal profits automatically triggers federal civil forfeiture under the RICO framework.

b. Yes, because the predicate acts of bribery and witness tampering were exclusively directed at state courts rather than federal governmental institutions.

c. No, because an enterprise includes any legal entity, and the firm operated as an ongoing organization to facilitate a continuous pattern of racketeering.

d. No, because RICO imposes strict vicarious liability on all corporate entities whenever a single rogue employee commits a qualifying state felony.

e. Yes, because the federal RICO statute was specifically drafted to target traditional mafia families, deliberately excluding licensed professional legal organizations from its scope.

Answer: (c)

Explanation: Under RICO, an "enterprise" includes any individual, partnership, corporation, association, or other legal entity, as well as any union or group of individuals associated in fact. Thorne's law firm, which operated as an ongoing, structured organization to facilitate continuous racketeering acts (bribery, tampering, money laundering) for cartel members, clearly qualifies as an enterprise. (a) is wrong because RICO explicitly applies to legitimate businesses used for criminal purposes, not just traditional mafia families. (b) is wrong because state law felonies like bribery and witness tampering are explicitly listed as predicate racketeering

activities under RICO. (d) is wrong because RICO requires a pattern of racketeering activity through an enterprise, not merely an automatic financial threshold. (e) is wrong because RICO does not impose strict liability for single acts; it requires a "pattern" (at least two acts) and participation in the enterprise's affairs.

Q83. During the city council debate on decriminalizing minor drug offenses, highly numerate council members who previously opposed decriminalization used their statistical skills to selectively reinterpret the crime data, reaching conclusions completely opposite to the statisticians' report. Which concept best explains this behavior?

a. The desuetude doctrine, wherein prolonged nonenforcement of a law leads highly educated politicians to mathematically nullify its ongoing statutory validity.

b. The rational actor model, where politicians deliberately falsify data to secure campaign contributions from law enforcement unions.

c. The asymmetric correction principle, which dictates that legislative bodies will naturally and inevitably correct over-inclusive criminal statutes through objective statistical analysis.

d. The motivated numeracy paradox, where higher analytical skills actually increase polarization by enabling partisans to selectively interpret data to protect their prior moral commitments.

e. The arbitrary and capricious standard, which demonstrates that municipal government officials simply lack the baseline capacity to interpret complex empirical evidence accurately.

Answer: (d)

Explanation: The motivated numeracy paradox, identified by Kahan et al., demonstrates that higher analytical skills (numeracy) do not lead to consensus on contested moral or cultural issues. Instead, highly numerate partisans use their skills to selectively interpret data in ways that support their prior commitments, actually increasing polarization. (a) is wrong because motivated cognition describes a psychological phenomenon where people genuinely believe their biased reasoning, not a conscious choice to deliberately falsify data for money. (c) is wrong because asymmetric correction is a theory about why legislatures rarely narrow criminal laws, not a psychological explanation for data misinterpretation. (d) is wrong because desuetude refers to the judicial invalidation of unenforced laws, not data interpretation. (e) is wrong because the paradox proves that the individuals have high capacity, but deploy it protectively rather than objectively.